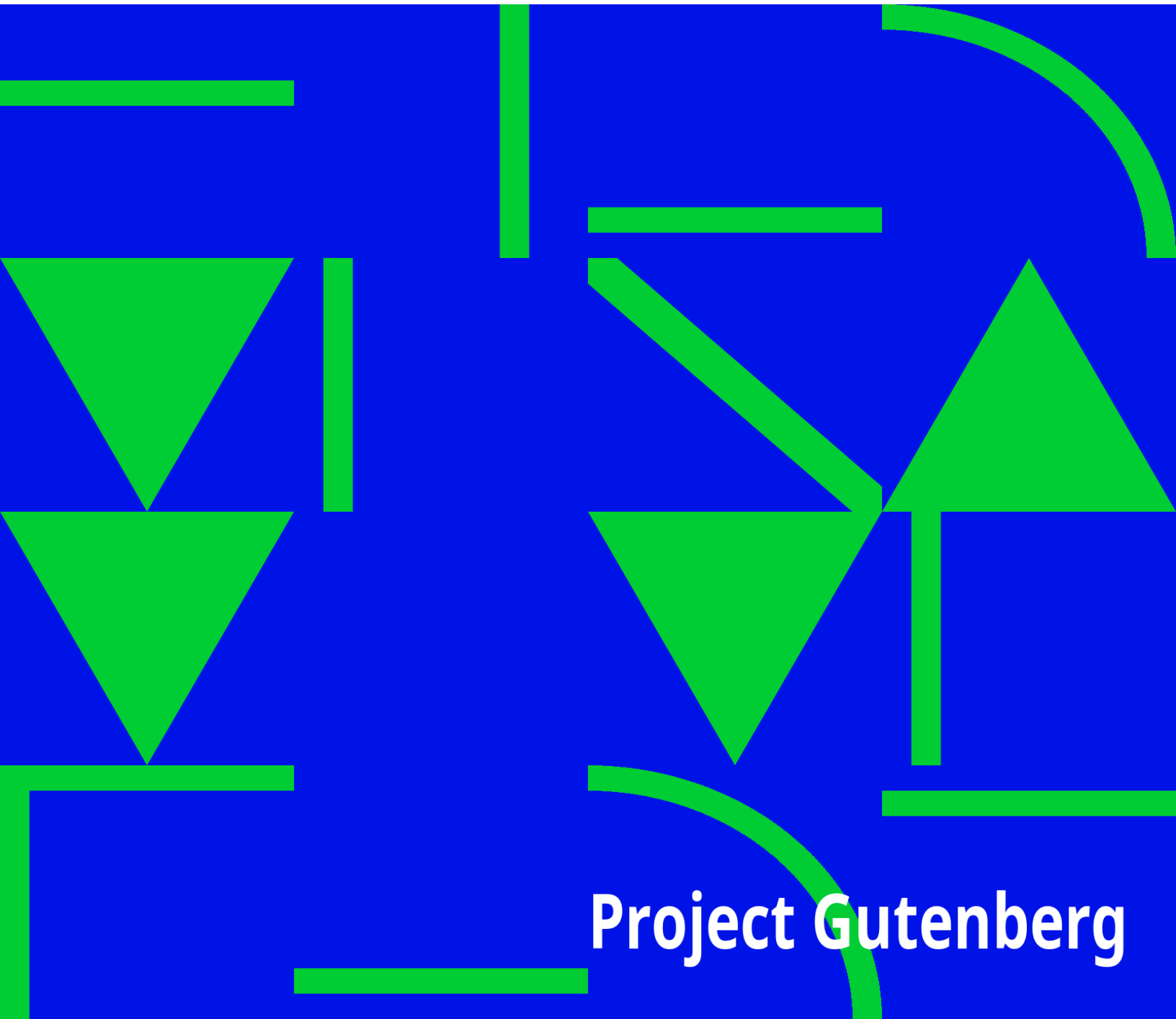


Christmas Stories

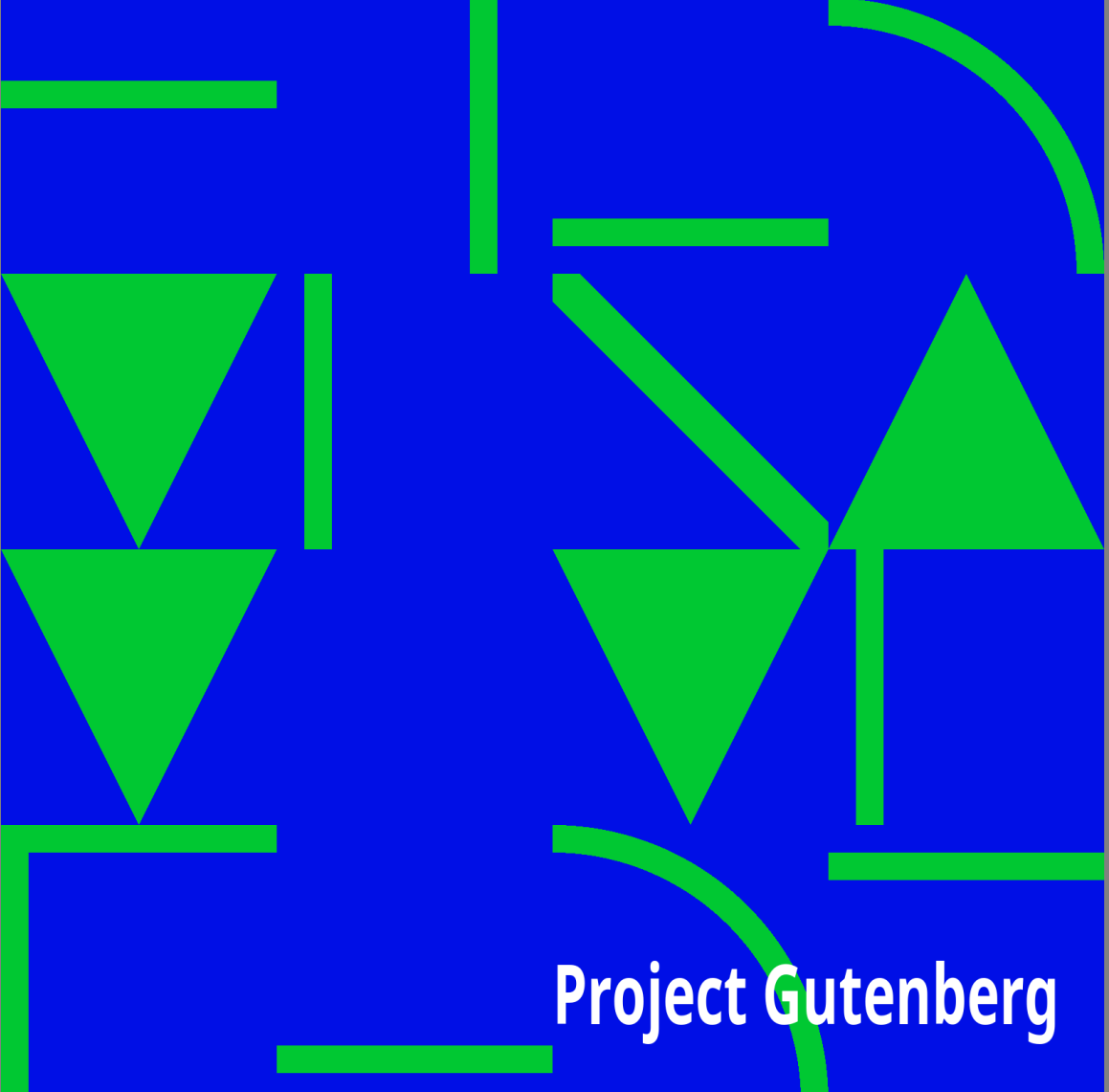
Edward Berens



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Christmas Stories

Edward Berens



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*** START OF THE PROJECT GUTENBERG EBOOK CHRISTMAS
STORIES ***

CHRISTMAS STORIES.

CONTAINING

JOHN WILDGOOSE THE POACHER,

THE SMUGGLER,
AND

GOOD-NATURE, OR PARISH MATTERS.

OXFORD,

PRINTED BY W. BAXTER,

FOR J. PARKER; AND F. C. AND J. RIVINGTON, ST. PAUL'S

CHURCH YARD, AND WATERLOO PLACE, LONDON.

1823.

THE

HISTORY

OF

JOHN WILDGOOSE.

ADVERTISEMENT.

The Author of the following Tale has, for some time, wished to put together a little Tract on the evil and danger of *poaching*; an offence which so often leads on to the most immoral habits, and the most heinous crimes. It seemed that his object might be answered by the aid of narrative and dialogue, more effectually than by a regular and continued discourse. If it should be thought, in any degree, worthy of standing on the same shelf with "Trimmer's Instructive Tales," and the "Cheap Repository Tracts," the ambition of the Author will be gratified.

Jan. 27, 1821.



THE

HISTORY

OF

JOHN WILDGOOSE.

Thomas Wildgoose was an honest and hard-working man, in one of the midland counties. He had long been attached to Susan Jenkins, a well-behaved young woman of the same village; but from prudence and a proper independence of mind, he determined not to take a wife until he had a house to bring her to, as well as some prospect of providing for a family without being a burthen to the farmers, who were already complaining of the pressure of the poor-rates.

In consequence of his good character he was never out of work; and though his wages were not high, yet he almost every week contrived to put by something, which he deposited in a bank for savings, lately established in the neighbouring market town. His weekly deposits were not very large sums, yet "many a little makes a mickle." This was helped out by a legacy of thirty pounds from an uncle; so that in a few years he was enabled to purchase a cottage with a small garden, and had still something over for a few articles of furniture. Susan, meanwhile, had gone on steadily in service, always making a point of putting by some part of her wages; so that when they married, they were comparatively rich. For some time after his marriage Wildgoose continued to work for his old master; and Susan, by field work in the hay-making and harvest, and by taking in sewing at other times of the year, was able to earn a good deal towards maintaining their children. The wants of an increasing family, however, led him to consider how he might enlarge his means of subsistence; and the success of an old acquaintance in the adjoining village, determined him to endeavour to purchase a horse and cart, and commence business as a higler.

A higler's business is liable to so many chances, and takes a man so much from home, that perhaps he would have acted more wisely if he had stuck to work. We cannot however blame him for endeavouring to better his circumstances in an honest way. Though he occasionally met with some losses from bad debts, yet upon the whole he did pretty well.

One day in November, as he was returning home from market rather late in the evening, and was walking quietly by the side of the cart, he was suddenly startled by a rattling noise behind him; and turning round, saw the True Blue stage driving furiously along the road, and the Opposition coach a short distance behind. Wildgoose immediately went to his horse's head, and drew his cart as close as he could to the hedge; but just at that moment the Opposition coach had got up with the other, and in endeavouring to pass it, one of the leaders knocked poor Wildgoose down, and the wheels went over him. The unfeeling coachmen were too eager in the race to attend to the mischief which they had occasioned; and the poor man was left lying in the road, until two neighbouring farmers, returning from market, found him, and brought him home, more dead than alive, in his own cart. At first some faint expectations were entertained of his recovery; but soon it was found that the injury which he had sustained was too serious to admit of hope.

Mr. Hooker, the clergyman of the parish, came to visit him frequently, for the purpose both of assisting his devotions, and of comforting his poor wife: and on one of these occasions he took an opportunity of asking him, in as kind a manner as possible, whether he had settled his worldly affairs. This certainly had not occurred to Wildgoose: when, however, Mr. Hooker explained to him, that if he died without a will, his house and garden would all go to his eldest son, subject to dower to his wife; and that in strictness of law his household furniture, shop-goods, and cart and horse, would be to be divided in three parts, one to his wife, and two between his children; he saw the propriety of arranging these matters while he was able. Mr. Smith the attorney was accordingly sent for. Poor Wildgoose, who had reason to have full confidence in the good sense and judgment of his wife, and in her impartial affection to her children, felt that he could not do better than leave every thing to her, at the same time constituting her sole executrix. He knew that she would consider herself as a trustee for the children, felt sure that she would not marry again, and thought it best not to fetter her by any minute directions. Mr. Smith prepared the will accordingly; and as three witnesses are necessary to a will bequeathing a freehold, their good neighbour Simpson the tailor was called in, who together with Mr. Hooker and Mr. Smith attested Wildgoose's execution of the will. When this was done, the poor man felt his mind relieved: and endeavoured more and more to detach his thoughts from all earthly cares, and to fix them on subjects

connected with those unseen things which are eternal. The next day he received the sacrament, which he had been in the habit of receiving frequently during his life; and before the end of the week he died.

Poor Susan had been for some time preparing for this sad event; but still when it actually happened, it seemed to come upon her by surprise. She felt quite stunned by the blow. At first, she could attend to, could think of, nothing but her own loss, her own sad and desolate condition. She was however soon enabled to turn for support to that Being, who bids the widow to trust in him, and who promises to protect the fatherless children. Her mind found a comfort in prayer; and the sort of strain and oppression which she felt through her whole frame was soon relieved by a flood of tears. The necessity of acting forced her to rouse and exert herself. Her husband had desired to be buried in as plain and simple a manner as possible; and she felt that she shewed him more real respect by complying with this direction, than by spending in useless shew that money which was wanted to provide necessaries for the children.

Thomas had been one of the singers. The band accordingly met, and shewed their respect to his memory by singing the funeral psalm, after the conclusion of the beautiful and impressive lesson in the burial service. Poor Susan, who was naturally a strong-minded woman, had been able so far to exert herself as to attend the last sad ceremony, but had nearly sunk while the psalm was singing. She felt, however, the ground of consolation suggested to her by the service. When the clergyman read, "Blessed are the dead which die in the Lord," and again, when he spoke of "the souls of the faithful after they are delivered from the burden of the flesh being in joy and felicity with the Lord," she felt an humble trust that these words were applicable to her dear departed husband. Deep therefore and acute as her sorrow was, she endeavoured to comply with the admonition of the holy apostle St. Paul, "not to be sorry as one without hope."

She had little time, however, for the indulgence of grief. The circumstances of her family made it absolutely necessary for her to consider by what means she should provide for them. One of her first cares was to administer to the will. Mr. Hooker told her that she was liable to a heavy penalty if she neglected this; and that though the penalty was seldom levied, she was hardly complete executrix until it was done. The next thing to be considered

was, how she could get a living without being a burden to the parish. Once she had some thoughts of carrying on the higgling business herself; but the being taken so much from her home and children, and several other circumstances, convinced her that this plan was not advisable. She therefore determined to sell the horse and cart, and set up a shop, for which there was a fair opening in the village, without doing injury to any of her neighbours.

It went to her heart to part with the horse, which had been her dear husband's fellow-traveller in so many journeys, and of which he had taken such good care; but prudence forbid her to give way to feelings of this nature. She therefore endeavoured to find for him a kind master, and got quite as good a price as she could expect. The cart too sold for as much as it was worth; and with the money which was thus produced, she was enabled to open her shop with a good supply of articles purchased at the ready money price. One plan, which she very early adopted, may be worth the attention of those who are engaged in the same business. She soon contrived to learn, what was the usual rate of profit, which the shops in the neighbourhood made upon the articles which they sold. They all sold upon credit, and of course lost a good deal by bad debts. Mrs. Wildgoose would gladly have sold nothing but for ready money; but as she soon found that this was out of the question, partly because some of the poor were irregularly paid by their employers, and partly from other causes, she adopted the following plan. In general she gave the same credit as the other shops, and thought it fair to make the same profit, but always gladly gave up half the profit to a ready money customer.

Three of her children were able to make themselves of use. John, the eldest, who was now eleven years old, was employed by a farmer at seven-pence per day. Mary, the next, assisted in washing and mending, and in taking care of little Sarah while her mother was in the shop; and Sam could earn two shillings a week, sometimes by pig-keeping, and sometimes by jingling a sheep-bell, to keep the birds from the corn.

And here I must just mention by the bye a scrape that little Sam once got into. He was sitting on the watch, under a hedge close to the public road, when a flight of pigeons settled on the wheat. Up jumped Sam, and, all at once, began hallooing as loud as his lungs would let him, and making the most alarming noise with his bell. He succeeded in driving off the

plunderers but, unluckily, the suddenness of the noise close by the road so frightened the horse of a gentleman who was riding by, that he turned short round, and threw his rider into the dirt. The gentleman was not much hurt, but a good deal out of temper; and vented his anger by giving a few cuts with his whip to the boy, who caused his disaster. Poor Sam meant no harm; but perhaps he deserved some punishment, as his thoughtlessness in making a sudden noise so near the public road, might have been the occasion of a broken limb, or even a more serious accident.

Notwithstanding a few occasional rubs and grievances, the family for some time got on pretty well; but there was something in the character of her eldest son, which gave Mrs. Wildgoose much uneasiness. He had, I am afraid, been rather spoilt from his infancy. Both father and mother were so fond of their first child, that they humoured him in every thing. Whatever he cried for he was almost sure to have, and this mistaken indulgence made him, from very early years, selfish, and wilful. Care and diligence afterwards, prospered by the grace of God, may certainly correct the effects of early spoiling; but, though they had so many other good qualities, the parents of John Wildgoose had not been sufficiently aware of the necessity of paying attention to the forming of his temper and principles. For a few years he was sent to the day school, and learnt to read tolerably well; but when he was between eight and nine years old, he was taken to work; and employed, sometimes by the farmers, sometimes to go on errands for his father. He felt his father's death a good deal, and for some time seemed anxious to do what he could to assist his mother. He stuck to his work, and regularly brought his earnings home; and was kind to his brother and sisters. Soon, however, the wilfulness of his character began again to shew itself, and gained strength by being no longer checked by the authority of a father. His mother was grieved to find that he would often go his own way instead of complying with her wishes. One of his principal faults at this time was a neglect of the Lord's day. He seldom came to church; and when he did happen to come, was inattentive to every part of the service. Mr. Hooker several times endeavoured to persuade him to come to the Sunday school; he told him that one principal use of such schools was the enabling those boys, who were engaged in labour during the week, to keep up and to improve the learning which they had acquired at the day school before they went to work; but he would not be persuaded. In spring he was bird's

nesting; in summer he was lying on the grass, or bathing in the river; in autumn he was nutting, and, I am sorry to say, was sometimes guilty of making an inroad on a neighbour's orchard; and in winter he was engaged in sliding on the ice, hunting squirrels, or some other diversion. Both his mother and Mr. Hooker lamented this, and in the kindest manner endeavoured to make him sensible of the folly of his conduct. He received their admonitions in sullen silence; and instead of feeling, as he ought to have felt, that their advice proceeded from a regard for his welfare, seemed to think that it was meant to answer some object of their own.

When he was just past seventeen, he unluckily struck up a close intimacy with a young man in the village, a few years older than himself. His name was William Atkins, but he was usually called Black Will. Atkins was a lively fellow, with a good deal of coarse humour. He was one of those men who neither fear God nor regard man, and who take pleasure in turning religion and every thing serious into ridicule. With him young Wildgoose passed many of his leisure hours; and sometimes on a Sunday evening they used to join a party of idlers at the Fighting Cocks, a lone public house, about a quarter of a mile from the village.

Mrs. Wildgoose saw the intimacy which her son had formed with great pain, and repeatedly cautioned him against it. "Jack," she one day said to him, "I do wish from my heart that you would not keep company with that Will Atkins. I am sure no good can come of it." "Why, mother," answered Jack, "what harm is there in poor Will? He is a good-humoured fellow, that loves a joke; and, I'm sure, he's always very kind and friendly to me." "As pleasant as you may find him," replied his mother, "you know that he bears but a middling character." "Yes," said the son, "but I shall take care not to be hurt by that." "Don't be too sure," rejoined she; "the *Good Book* tells us, that *evil communications corrupt good manners, that he that toucheth pitch shall be defiled therewith*, and that *the companion of fools shall be destroyed*." Jack never liked any thing approaching to a lecture; and sulkily saying, "I think, mother, I'm old enough now to judge for myself," left the house.

Black Will, among other qualifications, possessed that of being an experienced poacher; and it was not long before he let John Wildgoose into the art and mystery of this species of marauding. He used to tell him stories

of his dexterity in eluding the keepers, of his skill in entrapping the game, of the fine sums of money he made by it, and of the jolly parties which that money enabled them to have at the Fighting Cocks. Jack was amused with his stories, and began very soon to think that he should like to have a share in these adventures. As a boy he was always fond of bird's nesting, and bat fowling, and was eager to try his hand upon game of a higher description. Will was ready enough to lead him on. The next autumn he gave him a few wires, taught him how to set them in the most likely places, and how to make more. Young Wildgoose was at this time employed in keeping sheep, and was with them early and late. His friend instructed him to set his wires in the evening, and when he returned to his flock in the morning, to go round and see how they had succeeded. When he found a hare, he directly hid it in a ditch, or some snug place, till dark, and then carried it to Atkins, who used to meet him for this purpose near the Fighting Cocks. Secretly as he managed this, he did not escape the vigilant eye of Sir John's keeper; but besides that he felt for the young man's mother, and therefore was unwilling to expose him, he thought that he should do his master and the public more service by discovering the receiver of the hares, than by proceeding against the catcher of them. He had seen the direction which young Wildgoose usually took when he left his sheep, and contrived one night to station himself so, that he witnessed his meeting with Atkins, and saw the latter directly carry the booty into the public house. Stephen Tomkins the landlord was a keen, knowing kind of person. Though he sold a good deal of beer, yet he chose to say that he could not get his bread by keeping to his regular business, and had many other ways of earning a few shillings. Among the rest, he kept a horse and cart, with which he travelled every week as a higler, either to the county town, or wherever else suited his purpose. The game-keeper had long suspected him of carrying game, but had never been able actually to catch him. What he now saw, added to some private information which he had received, satisfied him that his suspicions were just. Early next morning therefore he applied for a warrant to search for game, and waited with the constable and two other men at the turn of the road, before you come to the turnpike at the entrance of the town. About the hour they reckoned upon, Tomkins's cart made its appearance, and they sallied out from the hovel where they had concealed themselves. Tomkins, upon being desired to stop, at first looked a little frightened, but soon contrived to put a good face upon the business. When they shewed him their

warrant, he pretended to be surprised, and affronted that they should suspect such a man as him of any thing improper; at the same time asserting with many oaths, that he had nothing in his cart but a few fowls and the butter which he had collected from the dairymen. The keepers, however, insisted upon searching; and were so long before they succeeded, that they almost thought that he had got some hint of their intentions. At last, however, quite at the bottom of the cart, under butter baskets, fowls, and other commodities of the same nature, they discovered first one hare, then a second, then a third. As it was market day, the magistrates were holding their usual petty sessions. The keepers immediately carried Stephen Tomkins and the hares into the justice room. The regular steps having been gone through, and the witnesses sworn and examined, Tomkins had not a word to say in his defence. Mr. Hale, therefore, who acted as chairman of the bench, proceeded to conviction, and addressed him in the following words.

"Stephen Tomkins, you have been convicted upon the clearest evidence of having game in your possession in your higler's cart, by which offence you have incurred the penalty of 15[English Pound]; that is, 5[English Pound] for each head of game, half to the informer and half to the poor of the parish^[a]. The law does not give us the power of mitigating this penalty; and even if it did, we probably should not feel that there was any cause for mitigation. The offence of which you are convicted is one, the effects of which are very mischievous. It has been said, that if there were no receivers of stolen goods there would be no thieves: and it may be said, with equal truth, that there would be few poachers if there were no clandestine receivers of game. Such men as you encourage thoughtless young men in this manner to break the laws of their country, and to take to a course of life which often brings them to an untimely end. We hope that this conviction will be a warning to you, and will induce you to desist from such practices."

^[a] See Note ^[A.]

Tomkins said, that it was very hard that he should have to pay so heavy a fine, only for having a few hares in his cart; and did not see how he was more to blame than the poulterer, to whom he was going to send them, or than the gentlemen who bought them of the poulterers. Mr. Hale replied, that he and his brother justices sat there to execute the laws, and had not time to discuss the propriety of them, or the cases of other offenders who

were not before them. "As for you, Mr. Tomkins," he continued, "for the reasons which I have given, I do not think your punishment at all too severe: at all events, it is the punishment prescribed by law, which we are bound to inflict. As for those other persons to whom you allude, a poulterer exposing game for sale, and a gentleman or other person *buying it*^[b], are liable to the same penalty, and if they should be brought before us with sufficient evidence against them, it would be our duty to convict them. Perhaps I might also feel it right to give them the same admonition that I have given you. I might feel it right to hint to them, as I have done to you, that they are encouraging poor men to break the laws by poaching, and that they are in one point of view more to blame than the poachers themselves. A poacher often pleads distress and poverty. This is no excuse for him, but can certainly often be pleaded with truth. Now, certainly, a poor, uneducated man, who breaks the laws through distress—though mind, I again say, that that is no excuse for him—must in one point of view at least, be considered as less blameable than he who knowingly breaks them for the purpose of mere gain, or, than he who violates them for the sake of gratifying his appetite or his vanity, by seeing game upon his table."

[b] See Note [B.]

Tomkins had nothing more to say, excepting that he had not the money by him, and wanted a little time to raise it. The justices therefore allowed him to defer the payment till that day fortnight.

When the culprit returned into the market-place, he pretended to make light of the affair; and calling at the Red Lion for a pot of ale with some gin in it, drank "good luck to poaching," and affected to laugh at the magistrates. Fifteen pounds, however, was really a heavy pull upon Tomkins's purse, and whatever he might pretend, it weighed upon his mind a good deal.

When he got back to his own house, he was loud in expressing his ill humour against Mr. Hale, and the whole bench of justices: and uttered against them the most dreadful curses. "Come, come, Stephen," said old Truman, his father-in-law, who was quietly sitting in the chimney-corner, "come, come, you are going a little too far; I am sorry for many reasons that you have got into this scrape, and don't wonder at your being vexed; but what right have you to cry out so against Mr. Hale?"—"Right!" said

Tomkins, "right enough, I think. Why, has'nt he fined me fifteen pounds?"—"Yes; but could he do otherwise? Every magistrate, you know, is sworn to execute the laws to the best of his judgment. If, after such clear evidence, he had let you off, he would have broken his oath, and have acted ill towards the public at large, and unjustly towards those who are entitled to receive the money. Besides, Stephen, you don't suppose, because a magistrate punishes you as an *offender*, that he bears any ill will to you as a *man*. Excepting on licensing-day, he probably never saw you before, and never thought about you one way or the other."—"Well then," said Tomkins, "I hate him for being a magistrate at all."—"Now there you're wrong again," said the old man; "I'm sure we all ought to be very thankful to those gentlemen, who will undertake such a troublesome office, especially as they get nothing by it. There are few people in these days that will work without pay. The judges get some thousands a year, and a pension when they are too old for service. I do not wish them one farthing less, for they deserve richly all they get, and are, generally speaking, an honour to the country. The attorneys too, if you have any dealings with them, come pretty quick upon you with their three-and-fourpences, and their six-and-eightpences; and the counsellors seldom open their mouths under a guinea or two. Tho' here again I must say, that I don't think either of these sorts of lawyers over-paid, when you consider how many years most of them work before they get any thing, (many, I believe, never get any thing at all.) The gentlemen, however, who act as justices, give their time and attention for nothing, and run the risk of giving offence to many of their neighbours into the bargain. No one, I'm sure, will undertake the office, who values his own ease, and quiet, and comfort, at a higher rate than the being of use to his neighbours and the public."—"I wish," said Tomkins peevishly, "there were no such things as laws or magistrates in the world."—"Like enough, like enough," replied Truman, "men are apt to quarrel with the laws when the laws are too hard for 'em. You don't often look into the Bible, Stephen, but that would tell you, that the magistrate *beareth not the sword in vain, but is an avenger to execute wrath upon every soul that doeth evil*. It is, therefore, natural for a man, who has done evil, or who means to do evil, to wish that there was no such check upon him. But those who, instead of doing evil, wish to lead quiet and peaceable lives in an honest way, are glad to have the laws to protect them from evil doers, and are thankful to those who duly execute them."

Tomkins did not much like Truman's lecture, and instead of being benefited by it, retained in his heart all his ill-will against Mr. Hale. In this he was not only very wrong, but, I am disposed to think, more unreasonable than the generality of men who may be in the same unlucky circumstances with himself. For men, who are convicted upon sufficient evidence, have generally the sense to see that the magistrate who convicts them, merely does his bounden duty. Tomkins put common sense and reason out of the question, and determined to do something by way of revenge. Mr. Hale's house was situated about seven miles off. It stood at the extremity of a rather extensive paddock, at the other end of which was a large fish pond, well stored with jack and perch. Tomkins knew the pond well, and took it into his head, that he would make it refund part of his fifteen pounds. He communicated his plan to Will Atkins, young Wildgoose, and Mike Simmons, who readily entered into it. They heard that Mr. Hale was from home for a few days, and determined to execute their plan without delay. They accordingly furnished themselves with a large net, and in the dusk of the evening proceeded to a barn, at a little distance from Mr. Hale's grounds. Here they concealed themselves till towards twelve o'clock at night. They then got over the pales, and were just beginning to open their net, when they were alarmed by the sound of horses coming swiftly along the road. They thought themselves safe from the owner of the pond, but were of course afraid of being seen at that time of night by any one else, and crouched down to avoid observation. In this they did not succeed. It was a cloudy night, but still the moon gave some light, and the horsemen, who proved to be Mr. Hale, (who had been unexpectedly called home,) his brother the Captain, and a servant, caught a glimpse of them. The gentlemen directly gave their horses to the servant, and jumping over the pales hastened towards the pond. The plunderers immediately ran off, and three of them were soon lost in the plantations. Wildgoose, however, in the hurry set his foot in a drain, threw himself down, and was taken.

When told his name and place of abode, Mr. Hale said, that "he remembered his father as an honest and industrious man:" indeed the sad accident by which he lost his life, had made his name known throughout the neighbourhood. And then addressing himself to his prisoner, "Young man," said he, "I respected your father, and have heard that your mother bears an excellent character; I am therefore, heartily sorry to find that their son has

taken to such bad practices. It is well for you that I did not come up a little later, after you had carried your scheme into execution. Had that been the case, you might have been transported." "Transported!" said Wildgoose in astonishment, "what, transported for taking a few fish!" "Yes, transported," replied the magistrate; "if a man steals fish from a pond in any inclosed ground, he is, upon conviction before one Justice, to be sentenced to pay five pounds: but if he enters into any park, or paddock, or garden adjoining to a house, and steals fish from any river, or pond in it, he is liable to be indicted at the Assizes, and transported for seven years^[c]. The law often finds it necessary to protect, by a severe penalty, property that is much exposed; and when a man is daring enough to carry on his depredations in the very homestead of his neighbour, he requires a severe punishment. In the present case, though your intention is sufficiently clear, I have no wish, and do not feel bound, to prosecute you. Nor shall I (as I might do) sue you for the trespass. Go home to your mother, and never again allow yourself to be led by bad advisers into the like crime."

^[c] See Note ^[C.]

Jack had told his mother that he was going to a friend at a distance, and should not return home that night. This made her sadly anxious; but she knew by experience that persuasion was lost upon him. When he returned home in the morning, she was confirmed in the suspicion that something was wrong. From his intimacy with Will Atkins she concluded he had been upon some poaching scheme; and determined, as she could do nothing herself, to try what effect Mr. Hooker could produce upon her son. It was not long before a good opportunity offered. Just as Jack left Mr. Hale's paddock, a heavy rain had come on, which soon soaked his clothes. Wet as he was, he got into a shed, partly for shelter, and partly to fill up the time, till his mother was up in the morning to let him in. The consequence was, that he caught a severe cold, attended with so much fever and head-ache, that he was unfit to go to work. Mr. Hooker called, and having kindly enquired after his health, began giving some hints on the subject of poaching. Jack sulkily answered, that "no one had a right to consider him as a poacher, until he was caught." Mr. Hooker, however, who had had some communication with Sir John's keeper, soon let him know that he had good ground for what he said; and endeavoured to make him sensible of the criminality and danger of his conduct. Jack would not acknowledge that

poaching was wrong. Stealing he knew was disgraceful and sinful. To carry off a sheep, or to rob a henroost, deserved, he allowed, to be severely punished; "but," said he, "I cannot see the harm of *poaching*: animals that run wild by nature belong to nobody, and any body that can has a right to catch them. I don't know why it is more wrong to kill a partridge than it is to kill a crow or a sparrow; or why catching a hare is worse than knocking down a squirrel." "The laws of the land," said Mr. Hooker, "have made a difference between those animals, and it is the duty of every man to obey the laws of the country in which he lives." "Not," answered Jack, "if the laws are hard or unfair." "Our duty," replied Mr. Hooker, "is to obey the laws as we find them. If every one were at liberty to reject such laws as he disliked, we might almost as well have no laws at all. The thief would cast off the laws against stealing; the drunkard those against drunkenness; and of course the poacher would have no laws against poaching. The Scriptures teach us *to submit ourselves to every ordinance of man; why? for the Lord's sake*:—as a matter of religious duty. They bid us to be subject not only for wrath, for fear of punishment, but *for conscience sake*. They teach us *to obey magistrates*: to be dutiful *to the king as supreme, and to magistrates as to them that are sent by him for the punishment of evil doers, and the praise of them that do well*. Remember, therefore, that quiet obedience to the laws of the land is a Christian duty. We are to obey the laws, whether we approve of them or not: but perhaps, after all, the laws against poaching are not so unreasonable as you take them to be. Upon what do the hares, and pheasants, and partridges feed?" "Why, upon a number of things; chiefly upon the grass and corn, and such like; and a deal of mischief they do." "Well then, being supported by the produce of the land, they ought in some way to belong to the land; but as from their wildness they move about from place to place, it is for the law to say in what manner they shall belong to it; and the law does this by making a certain property in land the principal qualification for killing game. Perhaps I may think that some alteration in the qualification might be an advantage; but I am not a lawgiver, Jack, any more than you; and as I said before, we are to obey the laws as we find them." "It's very well," said Jack, sulkily, "for a gentleman like you to talk about obedience to the laws, but I don't know what good the laws do to such a poor fellow as I am." Mr. Hooker did not immediately notice this, but, seeming to change the conversation, said, "By the bye, John, I was sorry to hear of your quarrel with Tom Nutman, the blacksmith at Ratton. I'm told

that he threatens to break every bone in your skin. Are you not afraid of meeting him?" "Afraid," said Jack, "let him touch me if he dare." "Why, do you think that he is prevented by any sense of religion from putting his threat in execution?" "Religion! he has no more religion than a dog." "Oh! then you think that he is afraid of you, and that you are more than a match for him?" "Why no, I can't say that:—he's much the strongest man of the two, and is a noted prize fighter." "Then why should he not dare to touch you?" "Because he knows, that if he should strike me, I should get a warrant against him, and have him off to prison before he was a day older." "Oh! that is what you mean, is it? it seems then that the law is of some use to you, poor as you are. And as you say that he is not influenced by the fear of God, what is there that prevents his coming to-morrow, with half a dozen of the Ratton men, carrying off every thing in your mother's shop, and breaking your head if you said a word against it?—The laws of the land certainly, which he knows would severely punish his wrong doing." John was forced to acknowledge, that even the poor had an interest in the protection afforded by the law to persons and property.

"But," continued Mr. Hooker, "poaching is positively wrong, not only as it is a breach of the laws, but on many other accounts. It is plainly contrary to the great rule of doing as you would be done by. You would not like, if the law gave you a right to any particular thing, to have any man come and take that thing from you: and so, when the proprietor of an estate and manor, like Sir John, is at much expence and trouble in order to preserve the game, which the law gives him a right to preserve, it is clearly wrong, and in opposition to the great rule which I have mentioned, for any man to invade that right. Besides, poaching is apt to bring a man into bad company, which is always most dangerous. The habit of being out at nights makes him familiar with deeds which shun the light; and too often, if he is disappointed of his game, the poacher makes up for it by taking poultry, or any thing else he can lay his hands on. We hear too every day, how poaching leads on to deeds of violence, and even of bloodshed, in the conflicts which it occasions with the men, whose duty it is to protect the game. In short, John, poaching is wrong in itself; it leads a man into a lawless way of life, and frequently is the beginning of all kinds of wickedness."

Young Wildgoose felt that there was much truth in what Mr. Hooker said; and though the pride, or stubbornness of his character would not allow him

to acknowledge it at the time, yet when he came to reflect on it after the clergyman was gone, he pretty much determined within himself that he would give up the sinful and dangerous practice into which he had been drawn. Perhaps some private reason came in aid of his good resolution. He stuck to his work; kept away from the Fighting Cocks; and avoided the company of Will Atkins and his old associates. His mother observed the alteration in his conduct with heartfelt pleasure. From the odd temper of her son, she thought it might be prudent not to say much about it: but she was particularly kind in her manner to him, and did all that she could to make his home comfortable. Young Wildgoose felt this as he ought, and for some time every thing went on well.

Unhappily one evening in November, as John was returning from his work, he accidentally fell in with his old companion Atkins: "Why, Jack," cried he, "what have you been doing with yourself? We never see thee among us now; and many a merry night have we had. What has made thee so shy of late?" Wildgoose told him that he was going to turn over a new leaf, and had given up poaching. "Well now, I'm sorry for that; but still that's no reason why you should'nt now and then join a friend or two over a pot of beer; so come along with me to Tomkins's. He'll be quite glad to see thee again." John refused with some steadiness, but Atkins said so much, with a sort of good-humoured raillery, that at last he gave way. In one pot of ale he thought there could be no harm.

At the Fighting Cocks they found four or five of Will Atkins's particular friends sitting round the fire. They had not been drinking much, seemed sociable and friendly, and talked about any thing that came uppermost. Wildgoose soon went beyond the quantity, to which he had stinted himself; when all at once Atkins called out, "Come now, Jack, do tell us what could possess you to give up sporting. You used to take as much pleasure in it as any gentleman in the land." John was taken by surprise, and did not well know what to answer. At length he fairly acknowledged that he gave it up in consequence of what Mr. Hooker had said to him. "Well now, that is too bad," said Will, "I thought that you had been a lad of too much spirit to be talked over by a parson. I concluded that you had some real good reason, and never should have guessed that you had nothing more to say for yourself than that." John replied, that Mr. Hooker spoke very kindly to him; and that in what he said, he seemed to have both sense and Scripture on his

side. "Scripture!" exclaimed Bob Fowler, "why sure enough Jack Wildgoose is turned methodist." They all laughed heartily at the joke, and went on for some time bantering Wildgoose upon his being so straight-laced. Jack never could stand being laughed at. He had not resolution enough to hold fast his integrity, when his integrity exposed him to ridicule. He did not remember the words of the prophet, *Fear ye not the reproach of men, neither be afraid of their revilings*: nor those of our Saviour, *Whosoever shall be ashamed of me and of my words—that is, ashamed of being religious, of being a Christian—in this adulterous and sinful generation, of him shall the Son of Man be ashamed when he cometh in his glory with his holy angels*. In short, Atkins and his comrades plied Jack Wildgoose so successfully with ale and bantering, that he gave up his good resolutions, and agreed to accompany them on a scheme which they had already planned for making an attack upon Sir John's preserve. They sat drinking till past twelve o'clock at night, and then repaired by different roads to the scene of action.

It so happened, that the keepers had received some information, which had carried them to the opposite side of the manor. The gang, therefore, carried on their operations for some time without interruption; and when their firing had drawn the keepers towards them, one of the party, who had been posted on the look-out, contrived to give them a signal, so that they got away without difficulty. They returned to their rendezvous loaded with pheasants, for which Tomkins paid them a good price, with some gin into the bargain. They gave Wildgoose more than his fair share of the money by way of encouragement; and agreed to meet again on the following Thursday.

On that day they determined to try their luck in the wood which covers the north side of the hill, just at the outside of Sir John's park. The party consisted of Black Will, Bob Fowler, John Wildgoose, Tom Cade, and one more. Will and Bob were provided with guns; the rest had bludgeons, in order to assist them, in case of any interruption from the keepers. Atkins and Cade entered the wood from the park, and the three others a little lower down. Atkins had just fired at a pheasant, when one of the under keepers jumped up out of the ditch, and calling out, "Holloa! what are you at there?" ran to Atkins, and collared him. Tom, who was at a small distance behind a tree, immediately came to his friend's assistance, and a well aimed blow of his bludgeon laid the assailant at their feet. At this moment the head keeper

and several of Sir John's men came up, and secured Tom. The other poachers were brought by the noise to the field of battle, and attempted to rescue their comrade; but as Fowler was aiming a blow at the man who had hold of him, one of Sir John's garden men struck him on the right arm, just above the elbow, with such tremendous force, that the bone was broken. The poachers, who before had begun to find that the keepers were too many for them, immediately ran, leaving Bob wounded, and Tom a prisoner. The former, in consequence of the hurt which he had received, was allowed to return to his family; but Tom was carried off to a magistrate, and then to gaol, in order to take his trial at the ensuing Quarter Sessions. The other three, when they found themselves safe from pursuit, slackened their pace. Will first broke silence, by exclaiming, "A pretty business we have made of it to-night. Well, we can't always manage as we did last week; but I hate to go home empty-handed." They were now passing through the orchard at the back of Farmer Dobson's house, when Will spied some turkeys, which had imprudently chosen to roost in the trees, instead of going into the poultry house. The opportunity was tempting; and for want of other game, Will twitched two of them from their branch, and carried them off so quietly, that the farmer's dog did not utter a single bark. Wildgoose was a good deal shocked at this. In the pursuit of game, though illegal, he thought there was something spirited and manly; but revolted at the idea of *stealing*. What Mr. Hooker had said on the tendency of poaching to lead on to other crimes occurred to him. He ventured to remonstrate; but Will answered, "Why, what's the harm? The old fellow is rich enough, and can well spare a turkey or two. If I had left them, they would only have bought a little more finery for his daughters." John still persisted that stealing was dishonourable, but his comrade replied, "Come, come, let's have no more preaching; in our way of life a man must not mind trifles. To tell you the truth, I have done as much by a sheep before now;—only then, to be sure, I had a little bit of a grudge against the farmer, and I knew he could easily afford it." Wildgoose was more and more staggered. He saw how easily a man, who was in the habit of breaking the laws in one instance, could go on to break them in another, but gave up arguing the point with his companion.

Fowler contrived to get home with his broken arm before the morning. When the surgeon arrived, he found that the fracture was a bad one; and the worse from the severe bruise with which it was accompanied. On the

Saturday morning, his wife, who had four small children, went to the overseer for relief. "And so you think," said he, "Nanny, that because your husband has thrown himself out of work, by his own misconduct, he is to be supported out of the pockets of the farmers? We have enough to do to pay rents and taxes, and provide for our own families, without having to provide for the families of poachers. If your husband had met with an accident in an honest way, I'm sure, I for one should have been for giving him all possible assistance; and no farmer in the parish would have said a word against it: but it is very hard that we should be expected to pay for his bad deeds." Nanny Fowler felt the truth of what he said, but replied, "that still they must not starve." "It is true," answered the overseer, "the law does say that nobody shall starve; but you must not expect much more from me than is just necessary to keep you from starving. I'm sorry, Nanny, for you and your children, but when the father of a family breaks the laws, he must expect his family to suffer for it as well as himself. It is in the nature of things that it should be so. You shall have from the parish just what is necessary; but even that you shall receive by way of loan^[d], and if your husband recovers the use of his arm, we shall compel him to repay it in the summer. If his arm never gets well again, which I fear may possibly be the case, we can't expect to get the money back; but we shall not maintain him in idleness. We shall set him to do what he can; and if he earns but a little, and is kept but just from starving, he will have no one to blame but himself."

^[d] See Note ^[D.]

The bad success of the last expedition, and the loss of strength which they had sustained, kept the gang of plunderers comparatively quiet. Jack Wildgoose, however, and Black Will, again took to their old practice of wiring hares^[e]; and contrived to dispose of a considerable number. The keepers were aware of it, but somehow could never manage to come upon them exactly at the right time. One Sunday morning, when Jack had gone round to examine into the state of his snares, and had just taken up a hare with the wire round its neck, Stokes the under-keeper, who had been concealed on the other side of the hedge, suddenly started up, and caught him in the fact. An information against him was immediately laid by one of Stokes's fellow-servants; a summons was procured; and John Wildgoose appeared at the Justice meeting, which took place next day.

[e] See Note [E.]

The information having been read, and Wildgoose having pleaded not guilty, the keeper was sworn, and began to give his evidence. Being asked at what hour in the morning the transaction took place, he replied, "A little after seven: for I had heard the great clock at Sir John's strike a few minutes before." "That's false, however," said a voice from the crowd, which was assembled in the Justice room. "Come forward there," said one of the Justices; when who should make his appearance but Black Will. The magistrate told him not to interrupt the witness, but that if he had any thing to say, he should state it upon oath when the keeper's evidence had been gone through. This was soon done; and then Atkins being sworn, and desired to state what he knew of the business, replied, "I know but little about it; but this I *can* say, before seven on Sunday morning Jack Wildgoose and I started together to see a friend at Hollybourn, which your Worship may perhaps know is about six miles off. We went to church there, and did not get back till the afternoon. So how Jack can have been wiring hares after seven I don't very well know." The Justices looked surprised, as the under-keeper had the character of being an honest, truth-telling man. Wildgoose himself said nothing. Mr. Hale, who acted as chairman, was beginning to put some questions to Stokes, in the hope of finding something either to confirm or to weaken his testimony, when an elderly man in a smock frock came to the bar, and said, "I should be as glad as any one to have the young man got off, both for his own sake, and for the sake of his good mother; but I cannot stand by in silence, and hear a man take such an audacious false oath as that sworn by Will Atkins. Why you know, Will," continued he, "that you skulked by the Fighting Cocks soon after seven; I was afraid that you were about no good, and if the gentlemen won't believe me, I can name another who saw you as well as I." This was old Truman, who had got a lift in Tomkins's cart for the sake of hearing the proceedings, but without the most distant thought of taking any part in them himself. His high respect for the name of God, and his general love of truth, compelled him to speak against his own wishes.

The fact was this. Atkins, who had gone to meet Wildgoose on the Sunday morning, in order to receive from him the hares which he had snared, heard that he had been detected, and almost immediately determined to try the chance of setting up an *alibi*. For himself, as he had not the fear of God

before his eyes, he cared not whether what he swore was false or true, so that it answered his purpose. He therefore had directed Wildgoose, though without telling him his intention, to keep close at home, and let no one see him; and had hastened himself to get out of the village, unobserved as he thought by any one.

When Truman spoke, Black Will turned pale with vexation and rage, and darted at the old man a look, which said that he longed to strike him to the earth. When Truman, however, had repeated his statement upon oath, Atkins endeavoured to get out of the scrape as well as he could, and stammered out something about mistaking the hour. Mr. Hale the chairman gave him a most serious reprimand. He told him, that "the deliberately calling upon the God of truth to bear witness to a falsehood, was daring the Almighty to his face. That, as the property, the good name, and even the lives of men depended in great measure upon preserving the proper respect for an oath, the man who wilfully took a false oath deserved to be banished out of all civilized society; he added, that he hoped Sir John would indict him for perjury." He then proceeded to convict Wildgoose. "The penalty," said he, "for using engines for the destruction of game, on other days, is, as you know well enough, five pounds. But as your offence was committed on the Lord's Day, the penalty is any sum that we think fit, provided it is not more than 20 [English Pound] nor less than 10 [English Pound]. In compassion to your mother we will fix the lower sum. This it is our duty to sentence you to pay. If you cannot pay it, and have not goods which we can distrain, you must go to prison." Wildgoose answered that as for the penalty, he neither could nor would pay it: that he had no goods, as he was only a sort of a lodger in his mother's house, and that he had as soon go to prison as not. He knew that there he should have plenty to eat and little to do. In this last supposition he was mistaken, as the magistrates had, though with some difficulty, contrived to find work enough to keep the prisoners continually employed. The parish constable, under whose care Wildgoose was, said, that of his own certain knowledge he was able to confirm the truth of his statement as to his having no goods to distrain. The commitment therefore was made out, and Jack was sent off to the county gaol.

Lightly as he had talked of going to prison, yet he felt a good deal when actually on his way thither; and when he saw the high walls, the grated windows, the narrow cells,—still more when he heard the clank of the

fetters of some of his fellow prisoners, who were confined for heinous offences, his soul sank within him. He was shocked too and mortified at being required to put on that token of disgrace, a prison dress. He did not, however, remain there long. His poor mother was thunderstruck at hearing that her son was really sent to prison, and lost no time in endeavouring to get money enough to pay the fine in order to procure his freedom. She had hardly any money in the house; but her neighbours were ready to lend her what they had by them; and four pounds, being the whole of her savings in service, were eagerly and freely given by Lucy Wilmot, a well-behaved young woman, to whom Jack Wildgoose had for some time been attached.

Mrs. Wildgoose could not bear to be in debt; and as she never was able to do much more than just maintain her family, she knew that she must deny herself and her children every little indulgence in order to repay her kind neighbours. But she thought that any thing was better than suffering her son to remain in prison, in the society, it might be, of depraved and abandoned characters.

The penalty having been paid, Jack was immediately set at liberty. He felt a little abashed at first coming home; but the kind manner of his mother, who, though her heart was full of grief, would not utter the least reproach, relieved him. Jack soon observed in a variety of little things a change in his mother's manner of living. She had been accustomed, for instance, to give her children a bit of meat baked with a pudding on Sundays. When, instead of this, nothing made its appearance but some potatoes and dripping, with bread and cheese, the girls looked disconcerted, and Sam cried out, "Why, mother, what's become of the meat and pudding? This is no better than a working-day's dinner." Mrs. Wildgoose told them, that she could not at present afford to give them a better, and they should be thankful for what they had. John knew well enough the meaning of this, and, to do him justice, felt a good deal. Often did he now wish that he had in his pocket again those many shillings and sixpences, which he had uselessly spent at the Fighting Cocks.

His mother, who had always been pleased with his attachment to Lucy Wilmot, thought it but fair to tell him one day how generously she had contributed to his enlargement. John was much overcome, and took the first opportunity of warmly thanking Lucy for her kindness to him. Lucy was

vexed at his knowing it, and was a good deal confused; but there was something in her manner, which encouraged him to express his hopes of being some day united to her. Lucy was a frank, ingenuous, open-hearted girl, and did not pretend to deny the regard that she felt for him; "but, John," said she, "I can never consent to marry a poacher; I should not think it right to unite myself to a man who lives in the habit of breaking the laws. I could not bear to have for a husband, the companion of nightly plunderers, drunkards, and sabbath-breakers. Besides, I should never have a moment's peace. The thoughts of fines, and imprisonments, and fightings with game-keepers, and all sorts of terrible things, would never be out of my head. Instead of your coming home to me at night, I should expect to hear of your being taken up, or wounded, or being forced to fly the country. No, John; I don't pretend to deny the kindness I feel for you. We were play-fellows when children; were always good friends as we were growing up; and—perhaps—I might now use a stronger term of regard; but I never will—I never can—marry a poacher." Wildgoose promised again and again, that he would give it up. "So you said before, John. Nobody could promise fairer than you did; and for a little while I hoped you would keep your promise. But you know how little came of it after all." John promised that this time he would be more steady. Lucy replied, "As yet, John, we are both much too young to think of settling. If I know my own heart, I think that I shall never love any man but you: but I will never become your wife, until you have shewn, by the experience of a year or two, that you have firmness enough to keep to your present resolution."

Wildgoose's spirit was a little *up* at Lucy's not choosing to *trust* him at once. He was deeply gratified by her acknowledgment that she was attached to him; but at the same time felt something like pique and ill-humour, at what he called her want of confidence in him. He was doubly resolved, however, to prove by his conduct that she had no reason to doubt his steadiness.

Every thing now seemed going on well. John passed his days in honest labour, and spent his evenings at home. He saw Lucy frequently; but soon after Christmas she was obliged to return to her place, which was in the family of a respectable gentleman, at some distance.

Towards the latter end of the second week in January, Wildgoose happened to be passing the public house, when Atkins and two or three others came

running out, and eagerly asked him whether he had heard the news. "News!" said John, "what news do you mean?" "News in which you are very nearly concerned," said Mike Simmons; "but we can't tell you here; come in with us into the house." To enter the door of the Fighting Cocks was rather contrary to Wildgoose's resolution; but his desire to hear news, in which he was so greatly interested, got the better of his scruples. He therefore went in, and found two or three other men, of no very good character, sitting round the fire, with their beer on the table. Jack felt bound to call for some too, and asked to hear their news. "And sad news it is," said Will; "the Quarter Sessions are just over; and—would you believe it!—they have sentenced poor Tom Cade to transportation." Wildgoose did not happen to have heard of the law, by which such nightly depredators, if armed in any way, are made liable to that punishment^[f], and expressed some surprise. "Yes, they have condemned him to transportation," exclaimed the whole party; "transportation! only for trying to shoot a pheasant or two." "Now there you mistake the matter," said old Truman, (who, as he lodged with his son-in-law, was present at more of these conversations than he wished,) "you mistake the matter altogether. The law does not transport a man merely for killing a pheasant, but for going out at night *armed*, and prepared for deeds of violence against those whose duty it is to protect the game. The law gives every man a right to take care of his property. It gives the owner of a manor and land a sort of property in the game on his manor and land, and a right to appoint persons to preserve it. If lawless men choose to go, where they have no right to be at all, prepared to beat, wound, and perhaps to kill, the men, whose duty it is to protect the game, they deserve to be trounced pretty tightly. Besides, you must remember, when a man is taken to in this way, he can't be punished at all without a fair trial by a jury; while in common game cases the justice is both judge and jury too. To be sure," added he, "if a man thinks himself wronged by a justice's judgment, he has always a right to appeal against it." Having said this, old Truman, who did not much like the company, and had no hopes of reforming them, went to bed.

[f] See Note ^[E.]

"For all the old man's fine talking," cried Atkins, "I say it is very hard and cruel usage of poor Tom: and I never suffer a friend to be wronged without being revenged. Sir John's pheasants, at all rates, shall pay for it, and I

would advise the keepers not to put themselves in harm's way." "Let's go to-night," said Tim Nesbit, "there will be a fine moon; and besides, I understand Sir John comes home to-morrow from Wales, and then we shan't have so good a chance." This was agreed upon, and Tim began singing the poacher's song;

Oh! 'tis a merry moony night;
To catch the little hares O!

They sat on drinking, though not so as to get intoxicated, till they thought the time suited their purpose. When preparing to start, Atkins said to Wildgoose, who had taken a good deal more beer than of late he had been accustomed to, "You'll go with us, Jack?" Wildgoose replied, that he had given up poaching for good and all, and should go quietly home. "Now don't ye be shy," said Maurice Croft, "come along, like a hearty fellow as you used to be." John still continued firm, and said that he should go back to his mother. "Aye, let Johnny go and be tied to his mother's apron string; that's a good Johnny," cried Tim Nesbit, "I always thought him a chicken-hearted fellow. Why, didn't Bob tell you that he was turned methodist? You can't expect a fellow like that to be true to his friends, or to have any spirit about him." "When a man has, as you may say, lost a limb in the service," said Bob Fowler, who was sitting by the fire with his arm in a sling, "it's all fair that he should be a little backward, but I can't bear that a stout young fellow like that should turn coward." Wildgoose felt mortified, and vexed, and angered; and his anger was upon the point of so far getting the better, as to make him still more determined upon avoiding their company; when Atkins, who had not joined in the cry against him, pretended to take his part. "Jack's as stout-hearted a fellow as any of you," said he, "and he'll shew it to-night. I know he'll go with us, if it's only to pleasure me, that have always been his friend, and run the risk of the pillory to get him off; and just to prove to you once for all that he's no coward." "Come, Jack, I know you'll come with us this once, and we won't plague you again about it. What has been said now, was all said in joke, so you mus'nt be angry. You know you need'nt carry a gun if you do'nt like it, but you *shall* just come and see the sport. No harm *can* come of it: as we shall be five of us, you may be sure the keepers will be wise enough to keep their distance."

Wildgoose, at last, suffered himself to be persuaded. He thought that Lucy would not hear of it; and that at all events it should be the last time. Away they went, and were soon at the outside of Sir John's preserve. It was a still serene night. The moon shone brightly, and the hoar frost sparkled like diamonds on the twigs and few dead leaves.

Atkins, who on these occasions always took a sort of lead, turned to his companions, and said, "Now, remember, my boys, we don't come here to be taken, and sent out of the country like poor Tom. For my part I don't think the keepers will come near us; but if they do, we must stand true to each other, and send them home again as wise as they came." They entered the wood, and dispersing themselves so as to be at no great distance from each other, began their attack upon the sleeping pheasants. They had not fired many shots before the game-keeper, who was going his rounds, was brought to the spot. As he was getting over the hedge, one of the stakes of which he had taken hold broke short off, and let him fall back into the ditch. The noise gave the alarm to the poachers, and they most of them concealed themselves behind large trees, or the inequalities of ground in an old gravel pit. Michael Simmons was not so quick as the rest. The keeper got sight of, and soon contrived to seize him, exclaiming, "So ho! my lad! you must go along with me." He hardly uttered the words, when Maurice Croft came to the rescue of his comrade. The keeper, who was a powerful man, still kept hold of him, and warded off a blow or two which Maurice aimed, as well as he could, when he found himself suddenly seized by two men from behind, and borne to the ground. "Blind his eyes, that he may'nt see too much of us," said Black Will; "tie his hands behind him, and make him fast to this young oak tree; he shall then have the amusement of hearing what pretty work we make among his pheasants."

These orders were immediately obeyed. His gun was given to Wildgoose, who was growing more and more eager in the sport. A handkerchief was placed over his eyes, and he was bound to the tree so tightly, as to occasion a considerable degree of pain. The gang went gaily to work again, and the keeper had the mortification of hearing the pheasants fall on all sides of him.

His trusty fellow-servant, Stokes, however, was not idle. He inhabited a cottage in the park. The first shot that was fired had made him rub his eyes

and raise his head from the pillow: and the second made him jump out of bed. From the number of shots he judged that the poachers were in force; and accordingly called up the two garden-men, the stable servants, and a labourer or two, who were kept in pay for such occasions. They hastened altogether to the scene of action, armed, some with guns, and the rest with stout bludgeons. The marauders soon got together, and appeared disposed to face them: but when a few blows had been struck, they found themselves so decidedly outnumbered, that they turned about and ran off in different directions. Some of Sir John's men hastened to unbind the game-keeper, while others went in pursuit. Stokes, as it happened, followed Wildgoose, and having nearly come up with him, called upon him to surrender. Wildgoose turned short round, presented his gun, and bad him keep off, or he would fire. He was determined not to be taken: and upon recognizing Stokes, he saw in him the occasion of his imprisonment, and of the difficulties which the payment of the fine had occasioned to his mother. He ought rather to have felt that he himself was the only cause of these evils, and that Stokes had merely done his duty. He had no time for reflection however; and his angry feelings of hostility, together with the desire to escape, so got the better of him, that upon Stokes's advancing to take hold of him, he fired. Stokes uttered a cry—exclaimed, "I'm a dead man"—and fell lifeless upon the ground.

Upon hearing the report of the gun, the keeper and his men quitted the pursuit of the other poachers, and hurried to the spot. For a moment or two Wildgoose stood motionless with horror at what he had done; but when he saw the men coming towards him, he endeavoured to provide for his safety by flight. Some difficulty which he found in clearing a hedge, enabled three of them to get up with him. He defended himself for a short time with the butt end of the fowling piece, but was at length overpowered and taken.

During the remainder of the night he was guarded at the keeper's house; and next morning was carried before a magistrate, who having taken the evidence of Sir John's men, committed him to the county gaol in order to take his trial at the Assizes.

Every body was sorry for poor Stokes, who was as honest and civil a fellow as any in the neighbourhood. All too felt for his widow, who with three

small children were thus suddenly deprived of a kind husband, on whose industry and good character she depended for subsistence.

When the dreadful intelligence reached Wildgoose's mother, she stood like a statue. She shed no tears; she uttered no lamentations; she stirred neither hand nor foot. At last, uttering a faint scream, she dropped senseless on the floor. Her eldest daughter, and a neighbour who had been called in, got her to bed, and it was long before she came to herself. At first she had but an indistinct recollection of what had happened, and felt as if awaking from a horrible dream. In proportion as her senses returned, she felt that it was no dream, but a sad reality. Her first impulse was to go to her son; but when she attempted to get up, she was unable to stand, and fell back upon the bed. A violent fever came on, attended with almost constant delirium, and the doctor had great apprehensions for her life.

The country house of the gentleman, in whose family Lucy Wilmot lived as house-maid, was at a considerable distance; and she had now accompanied her master and mistress to London. It so happened that the sad news did not reach her till a few days before the Assizes. When she had a little recovered from the first dreadful shock, she immediately determined to hasten to poor Wildgoose, in order to give him whatever comfort or assistance his awful situation would admit of. She requested therefore her mistress to allow her a short leave of absence; borrowed a few pounds of the house-keeper, placed herself on the top of a stage, and next morning reached the county town. With an aching heart, and trembling steps, she hurried to the gaol. The gaoler, who, like most of his brethren of the present day, was a kind and humane man, having asked her a few questions, conducted her into his own parlour, and promised to bring Wildgoose to her: adding, that though his duty did not permit him to leave them alone together, yet that they might depend upon his not repeating any thing of what might pass between them. Poor Lucy's heart sickened at the heavy creaking of the door which led to the prisoners' day room; and she was nearly fainting when she heard footsteps approaching the little parlour where she was sitting. When Wildgoose entered, she started up, and without speaking, eagerly tried to take his hand. He, however, uttering a deep groan, clasped both his hands to his face, and turning his head away, burst into a convulsive fit of sobbing. Lucy still held her hand stretched towards him, when he at last said in a smothered voice, "Oh! Lucy, don't try to shake hands with me; the hand of

such a good girl as you are must not be touched by the hand of a murderer." He then sank on a bench, and in spite of all his efforts to command himself, gave way to an agony of grief. Lucy could hardly stand; she had, however, been internally seeking strength from Him, who alone can give it, and by his aid was supported. Her ardent wish too, to be of use, led her to exert herself to the utmost. When, after some minutes, Wildgoose became a little more composed, she spoke to him of taking steps for his defence at his trial; and said that she was provided with money in order to secure the assistance of a lawyer. At first he would not hear of it. He said that it would be of no use, and that he deserved to suffer. Lucy herself, from what she had heard, hardly indulged any hope of his acquittal; but still urged him to make use of what assistance he could, both that he might have longer space for repentance, and also for the sake of his mother. "Oh, my mother! my dear, dear mother!" exclaimed Wildgoose, striking his hand to his forehead, and giving way to the expression of the most piercing anguish. Several minutes passed before he could at all compose himself, but when he was a little calmed, he at last consented that Lucy should take whatever steps she thought expedient. With a voice almost stifled with emotion, Wildgoose then asked Lucy if she had heard any thing of the poor woman who had been deprived by his rashness of a tender husband. Lucy replied that she had not. "Alas!" said he, "what is done cannot be undone, nothing can make up to her for her loss; but if my life should be spared, how gladly would I work night and day, to keep her and her poor children from want."

The gaoler now hinted to them that his duty required his attendance in another part of the gaol. The prisoner was therefore reconducted to his ward; and Lucy was just leaving the parlour, when a gentleman entered. From his dress and appearance she guessed him to be the chaplain of the gaol; and having ascertained by a timid and respectful enquiry that her conjecture was well founded, she implored him in the most earnest and pathetic manner to use his best offices in preparing Wildgoose for whatever might be the event of his trial. The chaplain answered, that he had already had many very serious conversations with the prisoner, about whom she seemed to be so much interested, and that he trusted that he was properly affected by his awful situation; "He appears," said he, "never to have been entirely without some impressions of religion, though his conduct was not sufficiently governed by it; and dreadful as is the crime with which he is

charged, yet it has not the additional guilt of premeditation. I never dare to build much upon a profession of repentance occasioned by the near prospect of death; but as far as I can judge, his repentance is deep and sincere. He is full of shame and sorrow for having lived in such neglect of God and his laws, and for having paid no better attention to serious religion. The anguish which he feels from this last fatal deed is heart-breaking; and it becomes doubly acute, when he thinks of the desolate condition of her whom his hand has made a widow. His only hope of forgiveness is founded on God's mercy in Christ." "May I understand then, Sir," said Lucy, in an eager though tremulous voice, "that you think that if—if—if he should suffer for the crime, his eternal interests are safe?" "I dare not say so; it is not for one sinful and erring mortal to pronounce confidently on the final state of another. The mercy of God is extended to all truly penitent sinners, through the atonement of Christ. I hope that the faith and the repentance of your friend are sincere; but, generally speaking, repentance under such circumstances must be attended with much of fear and doubt^[g]. As I said before, I hope that the penitence of this poor young man is such, that it would, if his life should be spared, shew itself to have been real, by producing the fruits of a holy life; but I presume not to speak with confidence. Let us both pray to God to perfect his repentance, and to increase and strengthen his faith." Many aspirations to this effect had already been fervently offered up by Lucy, and she renewed them with redoubled earnestness.

[g] See Note ^[G.] To which I particularly request attention.

Lucy was allowed to see Wildgoose frequently. When the anxious time of trial came, she secured him the assistance of an able lawyer, who exerted himself in his defence. It was however all in vain. The facts of the case were so clear, and the evidence so strong, that the jury without hesitation returned a verdict of guilty. The Judge, after a short preface, in which he emphatically introduced the words of Scripture, *whoso sheddeth man's blood, by man shall his blood be shed*, proceeded to pronounce the awful sentence of the law. He did this in the most feeling and impressive manner, and many of the audience were in tears. When he concluded in the solemn words, "The Lord have mercy on your soul," the prisoner, who during the trial had maintained a steady but melancholy composure, seemed torn and agitated by conflicting emotions. After half uttering a deep and smothered

groan, however, he in some measure recovered himself, and was removed from the bar. Lucy, it may easily be imagined, could not bear to be present at the trial, but waited in painful and breathless suspense at her lodgings. She thought that she was prepared for the worst, and had in fact never allowed herself to encourage any hope; but when the tidings of the sentence reached her, she felt a sudden mist before her eyes, and fell lifeless on the ground. The woman of the house kindly gave her every assistance; but it was long before she came to herself. At length she opened her eyes, and wildly looking round her, exclaimed, "Where is he? where is he? they have not torn him from me?" Again her eyes closed; and she lost the sense of her misery in another swoon. When she was a little recovered, the people with whom she lodged endeavoured to prevail on her to go to bed. She was, however, steady in her refusal; and as soon as her limbs were able to support her, hastened to the prison.

She now found Wildgoose heavily ironed, and additional measures taken for securing him. They grasped each other's hand in silent agony, and were long unable to speak. At length Wildgoose exerted himself so far as to give her a message to his mother and family, and Lucy employed the little time she was allowed to remain with him, in suggesting such religious consolation as seemed most adapted to his situation. The next day, which was Sunday, she received the Sacrament with him. Wildgoose was calm beyond her expectations; and behaved throughout with a seriousness and fervour of devotion, which gave her more comfort than she had yet experienced.

I must spare both myself and the reader the pain of speaking of the awful scene of the day following. It is distressing even to think, or to speak of an execution. How is it possible that such numbers—sometimes, I fear, even women—can seem to take pleasure in going to witness the last pangs of a fellow-creature, who is condemned to forfeit his life to the offended laws of his country! I would have every one pray for, and feel for, the criminal, but on no account seek to gratify curiosity, by actually witnessing his death.

The following paper was handed about, as the last dying speech of John Wildgoose.

"I acknowledge the justice of the sentence by which I suffer; and would have all young men take warning from my example. I attribute my crime and punishment, in the first place, to my neglect of the Lord's Day; and in the second, to my keeping bad company. Had I been regular in going to church, and attentive to my religious duties, I should, under the blessing of God, have preserved and increased the good impressions, which I had received from my parents. These impressions, however, I suffered to wither away. By keeping bad company I was led into *poaching*, in which I at first thought there was not much harm. When by a kind friend I was convinced that it was wrong, the want of firmness in religion prevented me from giving it up. Poaching made me the companion of sabbath-breakers, swearers, drunkards, and thieves; and at last led me on to the dreadful crime of murder. May God support and comfort the poor woman whom my hand has robbed of a husband, and the dear and excellent parent, whom the same rash action has deprived of a son; may He make my sad fate productive of good to all who hear of it; and may He have mercy on my own soul through Jesus Christ!"

As soon as Lucy had recovered her strength sufficiently to enable her to travel, she went to her native village, where she found that Mrs. Wildgoose had passed the crisis of her disorder, and was beginning to recover. Her two daughters were most attentive to her; but Lucy obtained permission to assist them in nursing, and to take her turn in sitting up by her bed-side during the night. When the poor woman's health was in some degree re-established, Lucy felt it right to return to her kind mistress; but her cheerfulness and good spirits had entirely forsaken her, and a settled melancholy seemed to have taken possession of her soul. Her only comfort is in prayer, and the consolations of religion.

After a confinement to her bed of several weeks, Susan Wildgoose was at length able to move about her house; and the wants of herself and family forced her to return to her former occupations: but she hardly spoke to any one; she served her customers in silence; and it is evident that the deep affliction under which she continually labours, will shortly bring her to the grave. Her daughters and surviving son have youth and health on their side; but their behaviour and appearance are totally changed: and instead of being merry and light-hearted, they have become pensive and serious. Time will wear away much of the acuteness of their grief, but it is probable that, as

long as they live, they will never be free from the most painful and distressing recollection, that they have had a brother who was executed as a murderer.

N.B. This Tale is sold as a Tract, price 9 d.

NOTES.

The following Extracts from Acts of Parliament are much abridged.

[\[A.\]](#)

If any higher, carrier, inn-keeper, &c. shall have in his possession, or shall buy, sell, or offer for sale, any hare, pheasant, partridge, or grouse, every such higher, &c. unless such game be sent by some person qualified, shall forfeit for every hare, pheasant, &c. the sum of five pounds, half to the informer, and half to the poor. 5 Ann. c. 14. s. 2.

[\[B.\]](#)

If any person whatsoever, *whether qualified or not qualified to kill game*, shall buy any hare, pheasant, partridge, or grouse, he shall, on conviction before one justice, forfeit 5*l.* half to the informer and half to the poor. 58 G. III. c. 75. s. 1.

Any person may recover the said penalty by information, or may sue for and recover the *whole for his own use*, in any court of record, wherein the plaintiff if he recovers shall have double costs. Sect. 3.

[\[C.\]](#)

If any person shall enter any park or paddock, fenced in and inclosed, or into any garden, orchard, or yard, adjoining or belonging to any dwelling house, and shall steal any fish kept in any water therein; or shall be assisting therein; or shall receive or buy any such fish, knowing the same to be stolen; and at the Assizes be convicted of such offence, he shall be transported for seven years. 5 G. III. c. 14. s. 1, 2.

And if any person shall take or destroy, or attempt to take or destroy, any fish, in any other inclosed ground, being private property, without the consent of the owner, he shall upon conviction by one justice forfeit 5*l.* to the owner of the pond or fishery, and, in default of payment, shall be committed to the house of correction for any time not exceeding six months. Sect. 3, 4.

[\[D.\]](#)

Whenever it shall appear to the justices, or to the overseers, to whom application shall be made for relief of any poor person, that he might, but for his *extravagance, neglect, or wilful misconduct*, have been able to maintain himself, or to support his family, it shall be lawful for the overseers (by the direction of the justices, &c.) to advance money to the person applying, by way of *loan* only, and take his receipt for, and engagement to repay, (without stamp;) upon default of payment, two justices may commit him for not exceeding three calendar months. 59 G. III. cap. 12. sect. 29.

[\[E.\]](#)

If any person shall knowingly and wilfully kill, take, or destroy any hare, or use any gun, dog, snare, net, or other engine, with intent to kill, take, or destroy any hare in the night, (or in the day time, upon a Sunday or Christmas-day,) he shall on conviction, on oath of one witness, before one justice, forfeit for the first offence not exceeding 20*l.* nor less than 10*l.*; and for the second not exceeding 30*l.* nor less than 20*l.*

[E.]

If any person or persons, having entered into any park, wood, plantation, or other open or inclosed ground, with intent illegally to take, or kill, game, or rabbits, or to aid and assist in so doing, shall be found at night armed with any gun, fire arms, bludgeon, or any other offensive weapon, such person being lawfully convicted, shall be adjudged guilty of a misdemeanour, and shall be sentenced to transportation for seven years, or such other punishment as may be inflicted on persons guilty of misdemeanour; and if any such offender shall return before the expiration of such term, he shall be sentenced to transportation for life. 57 G. III. cap. 90. sect. 1.

[G.]

Extracts from Stonhouse's "Sick Man's Friend," on a Death-bed Repentance.

Bishop Burnet, in his excellent book entitled the Pastoral Care, (page 173, of the fourth edition,) says, "A clergyman ought to give no encouragement to men, who have led a bad course of life, to hope much from a death-bed repentance; yet he is to set them to implore the mercies of God in Christ Jesus, and to do all they can to obtain his favour. But unless the sickness has been of long continuance, and that the person's repentance, patience, and piety, have been very extraordinary during the course of it, he must be sure to give him no positive ground of hope, but leave him to the mercies of God. For there cannot be any greater treachery to souls that is more fatal and pernicious than the giving quick and easy hopes, upon so short, so forced, and so imperfect a repentance. It not only makes those persons perish securely themselves, but it leads all about them to destruction, when they see one, of whose bad life and late repentance they have been the witnesses, put so soon in hopes, nay by some unfaithful guides made sure of salvation. This must make them go on very secure in their sins, when they see how small a measure of repentance sets all right at last: all the order and justice of a nation would be presently dissolved, should the howlings of criminals and their promises work on juries, judges, and princes. So the hopes that are given to death-bed penitents must be the most effectual means to root out the sense of religion from the minds of all who see it. Therefore, though no dying man is to be driven to despair, and left to die obstinate in his sins, yet, if we love the souls of our people, if we set a due value on the blood of Christ, and if we are touched with any sense of the honour or interests of religion, we must not say any thing that may encourage others, who are but too apt of themselves, to put all off to the last hour. We can give them no hopes from the nature of the Gospel covenant; yet, after all, the best thing a dying man can do is to repent. If he recover, that may be the seed and beginning of a new life, and a new nature in him: nor do we know the measure of the riches of God's grace and mercy."

"When," says Dr. Assheton, page 45 and 46 of his Death-bed Repentance, "you visit sick beds, and hear a poor dying creature lamenting his sins with tears, and most earnestly begging pardon for the sake of Jesus Christ; when you observe how passionately he resolves, that if God will but spare him, he will become a new man, and never be guilty of such extravagance; what do you say or do in such a case? Nay, what must such a wicked man do, who having lived in sin, shall thus happen to be surprised by death? Dare you be so uncharitable as to declare that he is past hope, that there is no remedy, but that he will certainly be damned? I answer, that I dare not presume to limit God, whose mercies are infinite. In such a case I will not censure him, but admonish and instruct him to the best of my judgment and abilities. I will exhort the dying sinner to remember his sins, to bewail them, to

beg pardon for them, to form firm resolutions of amendment, and (when there is occasion) to make restitution; and having prayed earnestly for him, and recommended him to God's mercy, do I *then* say such a one will be damned? No, I *dare* not. But do I say he shall be *saved*? No, I *cannot*. What then do I resolve? What do I determine in this matter? I will be silent, and determine nothing; for as I dare not flatter him into a false and groundless presumption, so neither would I sink him into the horror of despair. I say, I will determine nothing: I will judge nothing before the time. However, I must be so faithful to my ministerial office as to admonish this dying sinner, that the Gospel (by the laws of which we are to be judged) expressly declares, that "without holiness no man shall see the Lord," and that Christ is the author of eternal salvation unto them (and to them *only*) who obey him. *Heb.* v. 9. When therefore the sick man has been vicious and extravagant all his life long, if God accepts his dying *resolutions*, it is more than he has *promised*, and it is more than he has given his ministers power to *preach* and *declare*."

Repentance is a change of heart from an evil to a good disposition; no man can justly be called a true penitent, till his heart be thus changed, and whenever that change is made, repentance is certainly complete.

Now there is reason to conclude, God will consider that life as amended, which would have been amended if he had spared it. Repentance in the sight of man cannot be known but by its fruits. The only way man can judge is by the rule Christ himself has given us, "by their fruits ye shall know them." *Matt.* vii. 20.

But God (our great Creator) sees the fruit in the *blossom* or in the *seed*. He (and He *only*) knows those resolutions which are *fixed*; those conversions which would be lasting; and will receive such as are qualified by holy desires for works of righteousness, without exacting from them those *outward* duties, which the shortness of their lives hindered them from performing. All, therefore, a minister can do, is to recommend a *death-bed* penitent to the mercies of God. But it is impossible for *him* to pronounce what will be his state in another world.

THE

SMUGGLER.

ADVERTISEMENT.

It is possible that in the following little Tale there may be several inaccuracies with regard to the habits and manners both of seamen, and of smugglers. The residence of the author in an *inland* county must be his apology.

The similarity in some respects of the offence of smuggling, to the illegal pursuit which forms the subject of the preceding Tale—written two years ago—must be the author's excuse for the recurrence of similar sentiments and expressions.

Jan. 1823.



THE

SMUGGLER.

It was the latter end of the month of November, when Mary Waldron, having carefully put her two children to bed, sat down with an aching head and a heavy heart, to wait for the return of her husband.

He had sailed from Folkestone in a stiff half-decked vessel, in company with eight or ten of his sea-faring companions, and then told his wife that she might expect him back on the day following. But that day and another had passed away, and he was still absent.

The night was dark and tempestuous. The wind howled mournfully round the house; the rain beat hard against the windows; and whenever the storm seemed lulled for a moment, the continued roar of the waves, as they broke on the shingly beach, came heavily on her ear. She tried to occupy herself in mending one of her husband's fishing jackets; but her hands and the jacket were constantly in her lap, and it was with difficulty that from time to time she was able in some degree to rouse herself.

At length, wearied out with watching and anxiety, and her candle having nearly burnt to the socket, she lay down on the bed in her clothes, and was just falling into an unquiet slumber, when she was waked by a knocking at the door. She hurried down stairs, and let in her husband, who was accompanied by a short stout-built ill-looking man, in a rough seaman's jacket, from one of the pockets of which peeped forth the butt end of a pistol. Both were wet and tired, and both seemed sullen, and out of temper. At their first entrance, Mary eagerly cried out, "Oh! James, I am so glad to have you home again. I have passed a sad wearisome time since you went." But Waldron received his wife's greeting coldly, and almost in silence. He walked up to the fire place, and, stooping over the embers, began drawing them together, at the same time telling his wife to get a bit or two of wood, and then to warm a little beer. His companion had under his arm a large bundle, tied round with a piece of sail-cloth. "At least we've got that safe," said James, placing it in one of the chairs: and he then ordered his wife to

put it under the bed for the night, and to carry it early in the morning, before it was quite light, to Mrs. Hawker's shop, near the church. "I," added he, "shall be glad to lie in bed a bit, after being up three nights running." When they had finished their beer, the stranger withdrew; and Mary, after uttering a fervent prayer for all who are in peril by land or by water, and for the bringing back to the right way of those who have strayed from it, retired to rest.

Early the next morning, Mary, in compliance with her husband's directions, carried the sail-cloth bundle to Mrs. Hawker, who received it with one of her most gracious smiles, while her little black eyes sparkled with satisfaction. She immediately took it into a back parlour, and then returning to the shop, pressed Mary Waldron to take a glass of something comfortable. This Mary declined, and immediately hastened home, carrying with her a loaf for her husband's breakfast.

She found him still asleep, and the eldest of the two children trying to keep his little sister quiet, that she might not disturb him. At length, towards eleven o'clock, he got up, and the refreshment of a night's rest, a comfortable breakfast, and the active though quiet assiduity of his wife, seemed to have restored him to good humour. "We'd a roughish time of it last night," said he. "Yes, indeed," replied Mary; "and I wish, my dear James, you did but know a hundredth part of what I have suffered since you took to your present way of life." "Why should you be more uneasy now," said James, "than when I was nothing but a fisherman? We were then often out night after night, and sometimes in rough weather too." "To be sure, I used now and then to be a little anxious," said Mary, "but you were seldom out when it blew hard, and besides"—she hesitated a little—"besides—don't now be angry with me, James, for saying it—I felt then that you were trying to get your living in a lawful and honest way. Now when you are absent, my thoughts run upon all horrible things. I do not think so much of the perils of the wind and the waves, though that is bad enough, as of the chance of your being taken as a smuggler, or of your doing some dreadful deed in order to escape. They tell me, that the preventive-service men keep a sharp look out."

"A pretty deal too sharp," said Waldron, "I can tell you; if it had not been for them, we should have been back to Folkestone the night before last. We

were to have landed our tubs just beyond Dimchurch, and had made a signal for the men to be ready with the horses to meet us. There was a thickish fog at the time; but still, these fellows somehow got sight of us, and pulled off in their boat, just as we were nearing the land. Jack Spraggon, the man that was here last night, proposed sinking them; but, though they deserved it, I was not quite bloody-minded enough for that. We had nothing else to do, therefore, but to put about, and as the wind blew off shore, we soon by the help of the fog gave them the slip. As it was of no use to think of landing then, we stood right out to sea. The wind soon after chopped about, and freshened to a gale. When we were nearly off Folkestone, a Dane merchantman had managed to run aground at some distance from the shore. The king's men—I must say *that* for them—are always ready enough to help any ship in distress, and dashed away to take the poor fellows off the wreck. And while they were busy at this job, two of our boats came out to us, and put us and part of our cargo on shore in East Weare Bay—just under the red and white cliff there, under the signal house. As ill luck would have it, one of the men on the look out saw us, and gave the alarm. We soon knocked him down; but the rest of them got together so fast, that we were forced to run for it, leaving our tubs behind. I kept hold, however, of my bale of silk, and Jack and I scrambled up one of the winding paths in the cliff, and got clear off."

"Oh! James," said Mary, "how many risks do you run since you've taken to this free-trading, as you call it."

"Nonsense," replied Waldron, "a seaman's wife must never talk of danger."

"I feel," replied Mary, "as if I could almost consent to your braving any danger in a good cause; but the cause that you are now engaged in is not a good one."

"Not a good one! Why where's the harm, I should like to know, in buying in France a little brandy, or a few silks, or cambric, or laces, or what not, and selling them cheap in England, without going through all the trouble and expense of the custom-house?"

"There *must* be harm," said Mary, "in constant opposition to the laws of the land; there *must* be harm in living with such wicked men, as you now keep company with."

"Why, to be sure," replied Waldron, "the consciences of some of our free-traders are not over-scrupulous, but there are indifferent characters in all professions; and as for breaking the laws, I don't see much harm in that—I'm sure the laws do me no good."

"And what else but the laws," said Mary, "protect your house from plunder, and your wife and children from violence, when you are far away? But I don't pretend to argue the matter, nor is it necessary that I should; you know the word of God."

"Come, come," retorted James, with a good deal of quickness and ill humour, "don't be trying to come over me with your lecturing and cant."

"Oh! my dear, dear James," said Mary, with much earnestness, "if you love me, do not let me again hear you call the mention of the word of God by the name of cant. You used formerly to keep your church, and you still sometimes read your Bible; surely the evil men with whom you have associated lately have not taught you to deny the authority of the Scriptures?"

"Why no," said James, "it's not quite so bad as that; but what do the Scriptures say about the laws, or about smuggling?"

"Why, in one place the Scriptures tell us to *submit to the powers that be*, that is, to the laws and constitution of the country, not only from fear of punishment, but *for conscience sake*, and from a sense of the advantage derived from them by society. In another place they bid us *to submit to every ordinance of man for the Lord's sake*. And with respect to smuggling, they command us to *render tribute to whom tribute is due, custom to whom custom*. Therefore, whenever you smuggle goods into the country without paying duty at the custom-house, you directly fly in the face of this injunction of the Scriptures. And at the same time that the smuggler thus breaks the laws of God and the laws of his country, he also injures the regular trader by underselling him; for, of course, the man, who conscientiously pays duty, cannot sell so cheap as he who pays no duty at all."

"And that puts me in mind," said Waldron, who wished to put an end to the conversation, "that I shall want a couple of pounds before night. Do, Mary,

just step up to Mrs. Hawker's, and ask her to let me have them on account of the silk." Mary was always ready to comply with the wishes of her husband, and putting on her cloak, went to Mrs. Hawker's house.

She found her in her back parlour, shewing the silks to two smartly dressed young ladies. The eldest appeared to be about nineteen, the other two or three years younger. The countenances of both were expressive of good humour and liveliness, without much indication of thought or reflection. Each had selected a sufficient quantity of silk for a gown, and they were in the act of cheapening their purchases, when Mary came in. "No, indeed now, Mrs. Hawker, you *must* take off a shilling a yard. We really could get it as cheap in London, and, after all, the English silk they make now is quite as good." "That may be true," said Mrs. Hawker, "but you must consider, my dear young ladies, the difficulty I have in getting it, and the risk the poor fellows run." "Yes, indeed," said Mary, with a sigh, "it is the blood of men that you are buying."

The young ladies, who had not before seen Mary, as she was waiting near the door, turned round, and were just going to ask her what she meant, when one or two loud authoritative raps were heard at the outer door. At the same moment the maid servant came running in with every symptom of alarm, saying, in a suppressed voice, "Mistress, Mistress, make haste, the custom-house officers are here." Mrs. Hawker's countenance changed, but she was too much used to such occurrences to lose her presence of mind. "There, ladies, pop the silks under your pelisses—there—quick." The knocking was repeated more loudly than before. "Who's there," said Mrs. Hawker, in a shrill tone. A man's voice replied, "Let us in, we must come in directly." "Coming, sir, coming immediately." then in the same breath turning to the young ladies, "Stay, that will not do. If they find you here, they, perhaps, will search you. There, run into that back pantry, and keep the door tight." Molly, meanwhile, had run off with the bale of silk to a hiding-place prepared for such occasions, and Mrs. Hawker hastened to the door.

Before the officers had time to express their anger at being kept waiting, she put on one of her best smiles, and addressed them with, "Mr. Scroggins, is it you? Well now, I'm so sorry that you've had to wait; but the girl was down at the farther end of the garden, and I happened to be busy with my needle up stairs, and did not come down the first moment, as I did not know but

that she was in the house. But pray come in—I'm so sorry that I made you wait."

This speech gave their wrath a little time to cool: but Scroggins answered gravely, "Mrs. Hawker, we are come upon rather an unpleasant piece of business. We have had information that a suspicious looking parcel was brought to your house this morning."

"What, to my house!" said Mrs. Hawker; "well! what will people say next. I'm sure I should never have thought of such a thing; but pray satisfy yourselves—search wherever you please."

The officers looked about the shop and the back parlour, and went up stairs. The place where the silk was concealed was, however, so well contrived, as to escape their observation; and Mrs. Hawker put on the appearance of innocence so completely, that the men began to think that they really had been misinformed. The young ladies trembled with apprehension when they heard them come into the kitchen, and still more, when, as they passed the pantry, one of the men called out, "What door is that?" "O," said Mrs. Hawker, "that is a sort of out building, but it let in so much cold wind to the kitchen, that we had it nailed up before Michaelmas;—but, I dare say, we can get it open, if you wish to see it;—I'm sure I want no concealment;—run, Molly, run down to Mr. Bellows, the blacksmith—you know where he lives—near the pier."—"Why, I believe, we need not give you that trouble," said Scroggins; "I must say that you have been very ready to let us search every where: and, to tell you the truth, we are just now rather in a hurry, and it would be some time before Bellows with his lame leg could hobble here."

"Well, as you please," said Mrs. Hawker, "it's all one to me—I only hope that another time, Mr. Scroggins, you will not be quite so ready to believe idle stories that people make against their neighbours." The officers wished her good day, and walked off.

She watched them to a considerable distance before she ventured to release her prisoners from their confinement. They had been sadly frightened, but could not help laughing when they got out, though the eldest of them had greased the bottom of her pelisse against a flitch of bacon, which was lying on the bricks under the dresser; and the feathers of her sister were not

improved by the intercourse which had taken place between them and a bunch of tallow candles, which were suspended from the low ceiling.

Having directed the silks which they had purchased to be wrapped up in a few yards of Manchester cotton and sent after them, and having put half a dozen pair of French gloves in their reticules, they set out on their return to Sandgate, where their father, Admiral Mowbray, had passed the greatest part of the autumn.

Before descending the hill, they stopped, as in their walks back from Folkestone they generally did, to contemplate the scene before them, which though, perhaps, not remarkably striking, has something of a pleasing character. Immediately beneath them was Sandgate, sheltered from the east and north by a range of sand hills of no great height, but presenting considerable variety of form. From the top of this range a nearly level tract of country stretched along to the foot of the chalk ridge, the line of which is here relieved by several singular conical hills, which stand forward as detached outworks of the principal rampart of chalk. Close under them on the left was the castle, the grey tints and roughnesses of which have been smoothed and polished away by modern trowels, till it has acquired the appearance of a cluster of Martello towers. Beyond Sandgate were some traces of the unfinished works, once destined to protect the commencement of the military canal, and the sea, now nearly at high water, almost breaking over the road. The middle distance was formed by the town of Hythe, with its church on the bold rising ground to the north, its lancet-shaped east window peeping through the trees; and far to the left ran the long line of low land terminating in Dunge Ness. The fishing boats of Hythe and Romney, with a revenue cutter and three or four brigs, gave animation to the near sea view; while, at a considerable distance, a couple of Indiamen were majestically making their way down the channel.

After admiring the prospect, the two sisters were slowly descending the hill, when they heard behind them the footsteps of two persons, who seemed to be rapidly approaching. Their imaginations were filled with the idea of custom-house officers, and they immediately concluded that they were pursued. They therefore walked on as fast as they could, being apprehensive that if they *ran* they should confirm the suspicions of their pursuers. The same apprehension prevented them from looking back. The strangers,

however, continued to gain upon them, but when almost ready to sink with alarm, the young ladies found that their fears were groundless. They were overtaken and passed by a remarkably well-made active man, with a stout bludgeon in his hand, in company with a woman of a slight and elegant form, who contrived to keep pace with him, though she had a child in her arms.

They were in earnest conversation; the woman appearing to be using entreaties, to which the man refused to listen. Just after they had passed them, they heard the man say in a voice, at once expressive of determination and of an agitated state of feeling, "Come—there's no use in trying to persuade me; I've told you that I must be in the marsh to-night. Do you go home and mind the children, I shall not be absent long, and shall, most likely, get back to you before to-morrow night." He then seemed to make an effort, disengaged himself from his companion, and went on with a hurried step.

The poor woman gazed after him for some time, and then turned back with an expression of anxiety and woe, which went to the hearts of the two sisters. Their compassion and benevolence prompted them to endeavour to offer some consolation, but delicacy prevented them from intruding on the sorrows of a perfect stranger. Upon looking at her more attentively, they recognized the same woman whom they had seen, not long before, at Mrs. Hawker's, and by whose remark upon their smuggling purchases they had been surprised and shocked. They could not resist bringing it to her recollection, and asking her what she meant. Poor Mary immediately burst into a flood of tears; the violence of her grief affected and alarmed the young ladies; and while they were trying to soothe both her and her child, the eldest of the young ladies exclaimed, "Surely you are—but no, it is not likely:—you cannot be the Mary Allen, who, about ten years since lived as house-maid with Mrs. Stanwick in Hertfordshire?"

Surprise and a sensation of pleasure checked the current of Mary's sorrow. "Yes, indeed, I am," said she; "and is it possible that you young ladies are my dear mistress's nieces, who used so often to be staying with her when your father, the Admiral, was at sea? Oh! how kind you were to me, and how fond I used to be of you both! But then you were both little girls, and I could venture to talk to you with freedom."

"And so you may now," said Emily Mowbray; "you seem to be in some affliction. Before we knew who you were, we longed to comfort you; and now that we find that you are an old acquaintance, we shall have double pleasure in being of any use to you."

The circumstance of having, in early youth, been inmates of the same house, and in habits of frequent and kindly intercourse, leaves generally a lasting impression upon the heart. This is often felt by schoolfellows, who, when they meet, after having been long separated, have a peculiar frankness and warmth of feeling towards each other, which is seldom produced by an acquaintance contracted in maturer years. And something of the same warmth and disposition to freedom of communication is occasionally produced in children—children of the gentler sex particularly—towards the tried and valued servants of the families, in which many of their earliest and happiest days have been passed.

This species of feeling now glowed in full vigour in the bosoms of the two sisters, and of Mary Waldron. Mary had met with sympathizing friends when she most wanted them; and the Miss Mowbrays found the interest, which had been excited by witnessing her grief, increased to a ten-fold degree by this unexpected recognition. They pressed her to accompany them to their father's lodging house. The child, however, which she had left at home under the care of a neighbour, made this impossible. They therefore turned back, and walked slowly with her towards Folkestone, Caroline Mowbray having relieved her, by taking the child out of her arms.

During their walk, Mary told them, that nine years before she had accompanied her mistress to Hastings. They passed the winter there, and during that time, she became acquainted with James Waldron, who frequently came to the house with fish. Every body spoke well of him, as a sober, industrious, good-tempered man; and she became his wife when Mrs. Stanwick returned into Hertfordshire. For about six years they lived happily together at Hastings; they then removed to Folkestone, where a small house had been left to Waldron by a relation. Here he continued for some time to follow his old occupation, but unhappily became acquainted with some notorious smugglers, and was persuaded occasionally to accompany them in their expeditions to the French coast. He was led on step by step, till smuggling had become his principal employment.

"From the time that he took to the smuggling line," continued poor Mary, "my happiness has been at an end. He used to be the kindest of husbands and of fathers. Now he is seldom at home, and when he is, is generally out of temper. Now and then he will play with his children a little, but more frequently complains of their being troublesome. He used to be sobriety itself, but latterly has taken to drinking spirits. His very countenance is changed; it used to be frank and open, but now is apt to have a downcast anxious look, like that of a man who has some sad burden on his mind. And oh! how many fears do I have for him! Sometimes, I think he will be lost at sea, for they are out in all weathers; and sometimes I tremble lest he should be taken on shore, or that to prevent himself from being taken, he should do some dreadful deed that should bring him to the gallows."

"I now too well understand," said Emily Mowbray, "what you meant by what you said to us at Mrs. Hawker's."

"I should not have said it," answered Mary, "had I known who I was speaking to—but still it was nothing but the truth. Little do ladies, who in the lightness of their hearts come to purchase the smuggled silks, and the gloves, and the cambrics, little do they think what a sad business they are encouraging; that they are in fact buying men's blood. And oh! my dear, dear young ladies, would to heaven that were all—I tremble to think how not only the lives, but the souls, of these poor fellows—the soul of"—but here her voice failed, she clapped her hands to her face, and burst into an agony of grief. The two sisters soothed her as well as they could, and when she seemed tolerably composed again, turned their steps towards Sandgate.

The Admiral had been a little uneasy at their long absence. "Well! girls," he exclaimed upon seeing them, "where *have* you been all this time?" "Why, papa?"—"Well, you must not stop to tell me now, but make haste to get ready for dinner. Your cousin Harry Stanwick has promised to dine with us. We can seldom catch him, you know; but I told him, that coming to us was not being off duty, as he is as handy here as at the castle, in case any of these smuggling fellows should require to be looked after."

The young ladies hurried to their rooms, and when they came down stairs, found their cousin already arrived. The Admiral was eagerly trying to get from him some of the particulars of his saving the poor shipwrecked Danes.

"We had some difficulty," said Lieutenant Stanwick, "in launching our boat. The first time, when we had just got her into the water, a heavy wave knocked her clean over. Upon a second attempt we got her afloat, and were just beginning to use our oars, when she was swamped again, and two of the men were nearly lost in trying to get back to the shore. My brave fellows, however, would not give it up: they could not bear, they said, to leave fellow-creatures to perish almost within hale of the land. At the third trial we succeeded. We got under the lee of the ship, and found her fast aground, her main-mast and mizen-mast blown away, and a tremendous sea breaking over her. Several of the crew had been already washed off the deck. I never shall forget the joy the poor fellows expressed, when we got them into our boat. There was a black man particularly, whom they had brought with them from the West Indies, and who seemed quite overpowered with gratitude. We brought them all safely on shore, and weary and buffeted as they were, the preventive-service men gave them up their beds, and the greatest part of their rations^[h]."

^[h] Founded on fact.

During dinner the Admiral was continually asking for some particulars respecting the shipwreck, and it was with delight, mixed with a sort of trepidation, that the sisters heard the different instances of intrepidity and considerate kindness of these rough seamen. Emily Mowbray especially, every now and then, could not help betraying, by the animation of her eyes and the glow on her countenance, the deep interest she felt in the display of these qualities in their commander, anxious as he seemed to be in his narrative to keep himself in the back ground.

When the servants had withdrawn, the Admiral turned to his daughters, to enquire what had become of them all the morning. "Why to tell you the truth, papa," said Emily, "we had a little business in Folkestone." "Some smuggling transaction, I dare say," replied the Admiral; "but why did that detain you so long?"

The young ladies felt, that in prudence the less they said the better, but still they were so full of their morning's adventure with the custom-house officers, that they could not help telling it. "And could there, papa, have been *really* any danger of their searching us?"

"They would not have dared," said Henry eagerly, his dark eyes flashing fire, and his face becoming crimson; but almost immediately both his manner and his countenance changed—"But I don't know—perhaps they would."

"Yes, indeed," said the Admiral; "from what little I have seen or heard of these custom-house officers, they are well enough disposed to be civil where they have no ground of suspicion; but where persons choose to place themselves in suspicious circumstances, they are bound to do their duty.—I own I am quite astonished that any lady, with the slightest sense of propriety or delicacy of feeling, can expose herself to the possibility of being placed in so unpleasant a predicament."

"Why do you speak of ladies only, papa? I'm sure gentlemen smuggle as much as we do."

"I am afraid that some do," said the Admiral, "but it is generally in your service. I am quite hurt for the credit of the class of society with which I associate, when I hear of any gentleman or lady taking advantage of the confidence, which is reposed in them as such, for the purpose of evading the laws of their country. And for what?—for the sake of saving a few pounds; or for the gratification of some foolish vanity. I have sometimes fallen in with men, who would have shot me through the head if I had barely hinted the possibility of their telling a lie, who would yet be guilty of the most paltry falsehood and equivocation for the sake of deceiving a custom-house officer; who, after all, allowed himself to be deceived, only because he trusted that, being gentlemen, they would not condescend to lie. No, my dear girls, don't let me hear of your smuggling again."

The two sisters in the course of the morning had received a lesson against smuggling, which had not been lost upon them; but still the spirit of Emily rose at this attack, and she replied, "What, not smuggle at all? Why it is one of the chief amusements of coming to the sea coast."

"I wonder what pleasure you can find in it," said her father.

"Why, in the first place, the things are so much better and prettier than we can get in England; and then the little difficulties which we have to surmount, and the contrivances and concealment which we have to manage,

produce a sort of excitement, somewhat similar to that, which I imagine men to derive from the sports of the field. And, after all, what is the harm of smuggling? It is no offence in itself, and is merely made an offence by the arbitrary enactments of human laws."

"And ought you not, my dear Emily, to pay obedience to the laws, under the protection of which you live? I might take higher ground, and refer you to the express words of Scripture.—You know the passage to which I allude.—The poorest man in the country is protected by the laws, but if he is not sufficiently aware of the benefits which he derives from them, some little allowance may be made for him on the plea of ignorance, want of education, and the many wants and privations which he actually encounters. No such excuse, however, can be made for you, possessed as you are not only of all the necessities, but of many of the superfluities, of life. In the enjoyment of all these comforts and luxuries—in the rank and station which you hold in society—you are protected by the laws of your country, and surely those laws have a just claim to your obedience."

"There is, I acknowledge," replied Emily, "much force in what you say; but I am sure, that you must think the laws against smuggling are much too severe."

"The severity of laws is occasioned by the boldness of those who break them: when more lenient methods are found ineffectual, recourse is had to stronger and harsher measures. Smuggling, as you know, consists either in evading the payment of the legal duties, or in purchasing articles which are prohibited altogether.—The evading of the payment of duties is clearly the same as robbing the public of so much of its revenue^[i]. A poor man, who steals from distress, is punished, and justly punished, for no distress can justify doing wrong; but, I must say, that I think a well-educated person, who is guilty of wilfully plundering the public by smuggling, is a more guilty person than he is."

^[i] "Worthy. Pray, Mr. Bragwell, what should you think of a man, who would dip his hand into a bag, and take out a few guineas?"

Bragwell. Think! why I think that he should be hanged, to be sure.

Worthy. But suppose that bag stood in the king's treasury?

Bragwell. In the king's treasury! worse and worse! what, rob the king's treasury! Well, I hope the robber will be taken up and executed, for I suppose we shall all be taxed to pay the damage.

Worthy. Very true. If one man takes money out of the treasury, others must be obliged to pay the more into it; but what think you if the fellow should be found to have stopped some money *in its way* to the treasury, instead of taking it out of the bag after it got there?

Bragwell. Guilty, Mr. Worthy; it is all the same, in my opinion. If I was a juryman, I should say, Guilty, death.

Worthy. Hark ye, Mr. Bragwell, he that deals in smuggled brandy is the man who takes to himself the king's money in its way to the treasury, and he as much robs the government, as if he dipped his hands into a bag of guineas in the treasury-chamber. It comes to the same thing exactly."

From the Cheap Repository Tract, called "The Two Wealthy Farmers:"—a story, which, while it abounds in most useful moral and religious instruction, displays an insight into human nature, a talent for lively description, and a turn for quiet humour, which have seldom been surpassed.

"Well; but you can't say that we defraud the revenue, when we buy silks, or gloves, or lace, upon which we *can* pay no duty, even if we wished it!"

"These articles are absolutely prohibited by law, and you break the laws by purchasing them."

"But if the English can't make these things so well as the French, I don't see why I am obliged to buy inferior articles when I can get better—I am sure that I have heard you say yourself, that all matters of trade and manufacture should be suffered to find their own level, with as few restrictions as possible."

"This doctrine may be generally true; but there are many circumstances of a local or of a temporary nature, which may make restrictions expedient. However, you and I Emily are not *legislators*. *Our* business is to obey the laws of our country, even if they should happen to be not quite consistent with our own notions of political [oe]conomy.—But I must just add one or two observations upon the articles which you ladies are the most fond of smuggling. The prohibition of French and Italian silks was intended for the encouragement of our home manufacturers; especially the silk weavers in Spitalfields. You have often heard of the distress and poverty of those poor people. By buying foreign silk in preference to British, you, to a certain degree, add to that distress, and rob them of the encouragement, which they are entitled to by law. Of late, I believe, that branch of our manufactures has been in a flourishing state, and that the silk weavers are not only fully employed, but that they manufacture silks quite equal to those from abroad.

If so, the ladies who smuggle them have no inducement but the pleasure of doing what is forbidden. The French and Italians you know, have advantages in the production of the raw material, which we have not; and it seems reasonable to give our own countrymen some protection to countervail those advantages.—So again with respect to gloves, and lace. One of the principal difficulties which in these times we have to contend with, is the difficulty of finding employment for our overflowing population. Glove-making and lace-making furnish employment for our poor women; employment the more desirable, inasmuch as they follow it at their own homes. If you knew how eagerly multitudes of your own sex catch at any employment, by which they can earn but a few shillings a week, both your patriotism and your benevolence would render you unwilling to deprive them of it. For you, Emily, with your warm and affectionate heart, are not one of those who would annihilate all distinctions of kindred and country, in a vague idea of universal benevolence.

"But, after all," continued the Admiral, "perhaps my principal objection to your smuggling is the encouragement, which you thereby give to the poor fellows, who follow this dangerous and illegal occupation. The habit of living in constant opposition to the laws is not only criminal in itself, but has a most injurious effect upon the whole of a man's character. I have just given you credit for some feelings of patriotism, but you know that these feelings seldom exist in the breast of a smuggler. We have Buonaparte's testimony, that, during the war, they were constantly employed in traitorously giving intelligence to the enemy; and in assisting the escape of the French prisoners of war. This is bad enough; but we all know how frequently they are guilty of crimes of a still higher description, of the dreadful crime of murder itself. And are you lady-smugglers quite sure that you are clear of all participation in this accumulated guilt? The receiver of stolen goods is deemed by the law the accessory of the thief: and is not the purchaser of smuggled goods in some degree an accessory of the smugglers? Besides, if you knew the distress and misery which smuggling often occasions to the families of those engaged in it, you could not, I think, encourage it."

The sisters felt the force of this latter argument more deeply than their father was aware of. They were both silent. At length Emily said, "Come, cousin Henry, cannot you put in a word to help us?"

"To help you?" replied he; "no indeed:" and then added gravely, "But I am sure, that my dear cousins will not continue smuggling, while I and my brave fellows are daily hazarding our lives for its prevention."

Emily looked down, while her face and neck became scarlet, and a long pause ensued. The Admiral felt that enough had been said, and was endeavouring to change the conversation to some other subject, when a servant opened the door, and said to Henry, "You are wanted, if you please, Sir."

He went out, and returning in a few minutes, said to his uncle, "I must be off directly. A large smuggling lugger has been for some time hovering off the coast, and we have reason to believe, that they mean to land their cargo to-night in Romney Marsh, in spite of us. One of my brother officers has sent me word, that a number of men from a considerable distance inland are getting together with their led horses, and that he apprehends that they will muster one or two hundred. We, of course, must join forces to be a match for them; so good night."

He affectionately shook hands with the Admiral and the two sisters, and went out. The door had hardly closed, when he came back, and a second time, taking Emily's hand, said, "You are not angry with me for what I said?" "Angry, oh no!" He pressed her hand in his, and disappeared.

In less than five minutes, he was in his boat. Two of his men waited on the beach to shove him off, and then jumping in, they pulled stoutly to the westward. The moon shone brightly, the water sparkled on their oars, and the clean white sides of the boat were reflected brilliantly on the waves.

They had passed Hithe, and were nearly off Dimchurch, when they saw the lugger at some distance from them getting under weigh. By the assistance of her sweeps, and that of a favourable breeze which had just sprung up, she was soon out of sight. Five boats had just completed their second trip, and were beginning to land the remainder of her cargo.

The beach presented an animated scene of activity and bustle. Several horsemen, each with one or more led horses, were galloping down the beach, making the pebbles fly around them in all directions. One of their light carts was disappearing behind the mound of earth, which at high water

forms a sort of barrier against the sea; a second was labouring up the steep bank of shingles; and two others were just quitting the water's edge. A considerable number of men on foot, each with a tub slung at his back, were hurrying from the shore. The men in the boats were clearing them of the remainder of their cargo as fast as possible; while others were loading with tubs the horses which had just reached them.

At some distance to the right, Lieutenant Stanwick, to his surprise and indignation, discovered a pretty strong party of king's men in a state of inaction, and apparently uncertain what to do. The fact was, that the smugglers had posted behind the sea bank, which served as a breastwork, two strong parties of sixty or seventy men each, one on each side of the passage leading to the sea. These parties, being well provided with fire-arms, rendered any attempt to approach the carrying party extremely hazardous. Stanwick made his men pull right for the shore; but the moment the boat touched the ground, they were received with a volley of musketry, discharged by an invisible enemy. The balls whistled over their heads, but from the lowness of their position not a man was touched.

They immediately leaped on shore, and advanced rapidly towards the spot from which the fire proceeded. A second volley more destructive than the first arrested their progress. Three of their number fell; one killed on the spot, and two dangerously wounded. Stanwick himself received a bullet in his left arm, which shattered the bone a little above the elbow.

The men for a moment hesitated, and seemed almost disposed to retreat. Their commander, however, having contrived to support his arm in the breast of his jacket, again pressed forward, calling to his men, "Come, my lads, don't let us be beat by a parcel of smugglers!" At the same moment they were joined by the other party of seamen, and both uniting together, soon came to close quarters with the motley, but resolute, band of men, who were opposed to them.

The vigour of their attack made the smugglers give ground; but as they were almost immediately supported by the party from the other side of the road, the combat was renewed. The seamen fought with the most determined gallantry, but were so greatly outnumbered, that they were in some danger of being overpowered, when they heard the trampling of

horses rapidly approaching, and saw the glittering of arms in the moonlight. The alarm had been given at the barracks, and a troop of dragoons had been immediately ordered out, who had been directed by the firing to the scene of action. The smugglers, who, by this time, had nearly secured the whole of their cargo, commenced a hasty retreat, leaving three of their number killed.

For a short distance, they kept the public road; then turning suddenly to the right, crossed a broad ditch by means of a light wooden bridge, or pontoon, which was ready prepared for that purpose; and continued their flight across the marsh. The cavalry came up in time to make prisoners of two of the gang, who having been slightly wounded, had not kept up with the rest: but they found the bridge removed.

The three foremost of the dragoons, without hesitation, spurred their horses at the ditch. One of them swerved to the left; another came against the opposite bank and fell back upon his rider, who extricated himself with difficulty from his perilous situation. The third leaped short, and came into the ditch on his legs: he floundered on for a short way in the mud, the dragoon preserving his seat as steadily as if he had been on parade, until a low place in the bank enabled him to scramble back to his companions. The moon was now setting, and farther pursuit appeared to be not only useless, but dangerous.

The excitement occasioned by the short but vigorous conflict having ceased, Henry Stanwick found his strength beginning to fail. Exhausted by pain and fatigue, and faint from the loss of blood, he sunk down on the sea bank. One of his men, however, quickly contrived to tap one of the kegs, which had been dropped in the confusion, and gave him a small quantity of brandy, by which he was a good deal revived. As his men were anxiously proffering assistance, "Never mind me," said he, "I am only hurt in the arm, and shall do well enough; but there's a poor fellow there, who stands much more in need of assistance than I do." At the same time, he pointed to a man in a seaman's jacket, who was lying on the ground at a short distance from him. His hat was off, he had received a severe gash in the forehead, and a pistol ball had passed through the upper part of his body near the right shoulder. An old musket which appeared to have been recently discharged, and the stock of which was broken, was lying near him. When Stanwick's

men approached him, he was hardly able to articulate. They, however, made out, that he wished to be conveyed to Folkestone.

They accordingly carried him carefully down the beach, and placed him in the boat, in the easiest posture they could. Henry Stanwick was able to get on board without much assistance.

They rowed slowly back to Sandgate, and having landed their Lieutenant, proceeded on to Folkestone.

It was not without difficulty that the wounded man was lifted from the boat; and then, some of his brother townsmen having taken a door off the hinges, and gently laid him on it, set off with slow and heavy steps towards his house. As Waldron had told his wife not to expect him till the next day, she had gone to bed, and was quietly asleep with her children. Hannah Reeves, a poor woman who lived near the pier, had kindly gone forward to prepare Mary for what she had to go through, and knocked gently at her door. She started up in her bed immediately, for the anxious state in which she had been living had accustomed her to awake at the slightest noise. Having put on a few clothes, and struck a light, she hurried down stairs. In the countenance and manner of her kind-hearted neighbour, she immediately saw that she had some sad intelligence to communicate; but when she heard that her husband had been brought to Folkestone severely wounded, her eyes grew dizzy, her head swam, and she would have fallen to the ground had not Hannah supported her.

It was no time, however, for giving way to grief, and, by a strong effort, she almost immediately roused herself. Understanding that there might be some difficulty in getting her husband up the narrow winding staircase, she set to work, with the assistance of Hannah Reeves, to bring the mattress on which she slept into a little back room, the floor of which was boarded. She made it as comfortable as she could, and had hardly completed her preparations, when the heavy tread of a number of men was heard approaching the door. Mary was unable to speak, but silently assisted in placing her unhappy husband on the bed, that she had got ready for him. The rough weather-beaten countenances of the men who had brought him, were softened to an expression of mournful sympathy; the eyes of several of them were filled

with tears. As soon as they found they could be of no farther use, they quietly withdrew.

Waldron had hardly shewn any signs of life, excepting by uttering now and then a deep and heavy groan: but when the men were gone, he contrived to raise himself a little in the bed; and taking the hand of his wife, who was hanging over him in speechless agony, said in a voice, almost inarticulate from weakness and emotion, "Oh! Mary, why did I not listen to your advice! I might have earned my bread in an honest way, and been happy with you and the children; but I listened to the persuasion of evil men, and now, smuggling has brought me to this." He would have said more, but the effort which he had made was too much for him—he sank down on the bed, and after one or two deep but feeble groans, expired.

Mary did not immediately perceive what had happened; but when the dreadful reality burst upon her, the shock was too powerful for her frame, exhausted as it was by anxiety and grief. While there was an immediate call for exertion—while there was any thing to be done for her husband—the exertion had roused and supported her. That support was now at an end, and she fell senseless on the floor.

Hannah Reeves was up stairs with the children, one of them having begun to cry, and she had succeeded in quieting and lulling it asleep. Upon returning to the back room, she found Mary Waldron extended motionless by the side of her husband. Gently raising her up, she endeavoured to restore her to herself by throwing cold water in her face, applying burnt feathers to her nostrils, and making use of such other remedies, as either she, or two or three neighbours, who had come in to her assistance, could think of. For a long time their endeavours were ineffectual. At length a slight convulsive tremor seemed to pass over her. Her lips, which had been deadly pale, began to assume something of their natural colour, and after one or two deep and long drawn sighs, she appeared to breathe with some degree of freedom. The first care of her kind attentive neighbours was, to remove her from the sad object which was stretched out by her side. With difficulty they got her up stairs, and undressing her, laid her in the same bed with her children.

Hannah Reeves was anxiously watching over her, when she opened her eyes, and said in a faint voice, "What, is it you, Hannah? What brings you here so early in the morning? But I suppose it is time for me to think of getting up.—Oh! Hannah, I have had such a dreadful dream! But it is all over now, I am so glad that you woke me." And then after a little pause, added, "How soon do you think James will be home again? He told me that he should come back before night." Poor Hannah turned away her head, and seemed to busy herself in another part of the room, and Mary again fell into an unquiet slumber.

Henry Stanwick had been landed near the castle at Sandgate, supported by one of his men, he was slowly ascending the beach, when he was met by the Admiral muffled up in a sea cloak. He had heard of the engagement with the smugglers, and of his nephew's wounds. "Come along, Harry, with me," said he, "we must nurse you at my house. I have no doubt that you would be taken very good care of here: but still there are some little comforts, which perhaps can be furnished better at a private house; and we must allow that the women understand these matters better than we do." Henry yielded to his uncle's persuasions. He found his two cousins ready to receive him, with looks expressive of tender affection, mixed with deep anxiety. They had been busily occupied in preparing his room. As the surgeon was expected every moment, they were fearful of altering the position of the wounded arm until his arrival.

In the interval Lieutenant Stanwick, though suffering a good deal of pain, shortly mentioned a few particulars of the conflict; adding, "I cannot help longing to hear what becomes of the poor fellow, that we brought away in our boat. He wished to be carried to Folkestone, and "—"To Folkestone!" exclaimed Emily, "I hope it is not poor Mary's husband!" "He did not mention his name," said Henry; "indeed he could hardly speak at all, but he was a remarkably well-made active looking fellow, and I was vexed to my heart at his having engaged in such a service." The sisters could not help having some misgivings, but they had a nearer cause for anxiety in the severe wound of a relation so deservedly dear to them.

When the surgeon arrived, he found the bone of the arm so much injured, that immediate amputation was necessary. The operation was successfully

performed, but was followed by a considerable degree of fever, during which the two sisters nursed him with unremitting assiduity.

The fourth day after the amputation Henry seemed much better, and both he and the Admiral begged them not to continue to keep themselves such close prisoners, but to resume their usual exercise. They were the more ready to comply, as they were very anxious to go themselves to Folkestone, to enquire after Mary Waldron. They found out the house; but upon approaching it, observed a degree of bustle, and saw several men in sailors' jackets—most of them with some symbol of mourning about their dress—issuing from the door. Presently the coffin was brought out; the men raised it on their shoulders; the black pall was thrown over it; and with measured steps they moved towards the church-yard, while the solemn toll of the bell, being heard at shorter intervals, announced the near approach of the corpse to its last mansion.

The sisters waited at some little distance, till the melancholy procession had passed on; and then going up to the door of one of the neighbouring cottages, enquired with feelings of deep interest after poor Mary.

She, they found, was perfectly insensible to all that was passing. The morning after her husband had been brought home, she for sometime appeared to retain no trace of what had happened. The circumstance of her being not in her own bed, and the manner of Hannah Reeves, who was unable to control her feelings, by degrees brought back to her recollection the dreadful calamity which had befallen her. She uttered one piercing cry of woe, and then a deadly stupor took possession of her whole frame. From this she had at last been roused, but it was succeeded by a wild delirium, and a burning fever, which no skill or attention had been able in the slightest degree to mitigate.

The sisters went to this house of mourning. The children had been removed to the cottage of a neighbour, but Hannah Reeves came down to them. She had hardly ever quitted the bedside of the sufferer, and attended her with that watchful kindness, which the poor so often shew to each other when in distress. The Miss Mowbrays begged Hannah to let nothing be omitted which might contribute to the recovery of poor Mary, at the same time mentioning their intention to take every expense upon themselves. They did

not know Hannah, but there was something in her manner which told them that any hint of remuneration to her would be misplaced.

Upon their return to Sandgate they found sitting with the Admiral the captain of the troop of dragoons, which had come to the assistance of the seamen. From him they understood, that of the two smugglers who had been taken, one was a Folkestone man of the name of Spraggon, a man of notoriously bad character, and who had behaved in the engagement with the king's men with a boldness bordering on ferocity. The other prisoner was a labourer belonging to a village just above the marsh, who had long been in the practice of assisting in running smuggled goods. He received high pay—five, eight, ten shillings a night—sometimes even more. Money obtained by breaking the laws seldom does a man any good. And, in fact, when he came to deduct the sum which he might have earned by more creditable work—for a man who had been out all night could not work the day following—and also the money which went in drink and other expenses—it was generally found that little came home to his family. His earnings of all descriptions, however, were now put an end to. He and Spraggon were convicted at the next assizes of the murder of the seaman; and two days after were executed.

It was long before Mary Waldron shewed any signs of returning health. The fever, however, gradually gave way, but it left her in a state of the most deplorable weakness. Emily and Caroline called at the house very frequently during the whole progress of her illness, supplying abundantly whatever they thought likely to contribute to her recovery, or to her comfort in her present state of suffering. But from the time that her reason and recollection began to return, their walks to Folkestone became almost daily. In the gentlest and kindest manner they said and did all they could, to comfort her, and to assist in directing her thoughts to the only unfailing source of consolation—to that Being, who invites the widow to trust in him, and promises to protect and provide for the fatherless children.

From such considerations as these, and from that aid which was granted from above in answer to her humble and fervent supplication, Mary recovered a degree of calm composure almost sooner than the sisters had anticipated.

Once, when speaking of her future means of subsistence, they hinted the idea of making up, with the assistance of their friends, an annual sum, which would be sufficient to keep her from want. But Mary would not hear of this. "If it please God," said she, "to restore me to health, I have no doubt, but that by taking in washing and needle work, I shall be able to get bread for myself and my poor children; and as long as I am able to work for myself, I could not bear to be a burden to any one." "But it would be no *burden to us* at all," said Emily. "Of that," replied Mary, "I am well assured, from the kindness, which you have already shewn me; but I feel that I could not be so happy if I depended for my livelihood, under Providence, upon any one but myself."

In their walks to Folkestone they were often accompanied by their cousin Harry, who in consequence of his wound had been relieved from the painful service in which he had been employed, and appointed first lieutenant to a frigate, which was destined to the Mediterranean, but was not to sail for some months.

One day, as they were approaching Mary's house, the two little children came running out, with much glee and animation in their eyes, to thank them for their nice new frocks. The sisters knew not what they meant. Upon entering the house, Mary expressed her acknowledgments for what they had sent the children, as well as for the gown and other clothing which she had received herself. They looked surprised, and said that they had sent nothing. The colour of Henry's face soon told Mary who had been her benefactor.

In their walk they had passed by Mrs. Hawker's shop, and found the windows shut up. They asked Mary the meaning of this. She told them, that some time before, the officers had made a large seizure of smuggled goods in her house, and had sued her for the penalties, which amounted to so large a sum, that she was utterly ruined.

It is hardly necessary to say, that the Miss Mowbrays had never visited her house since their purchase of the silks. The many crimes and calamities which a single day had witnessed, had given them a sufficient lesson upon the evils of engaging in illicit traffic; and neither the stump of Henry Stanwick's arm, nor the sight of the widowed Mary and her fatherless

children, were needed to make them resolve, that they would never again be guilty of *smuggling*.

GOOD-NATURE,
OR
PARISH MATTERS.



GOOD-NATURE,

OR

PARISH MATTERS.

Mr. Stanley had just reached the last stile in the footpath leading to Inglewood parsonage, when his progress was for a moment interrupted by two persons, who were talking so earnestly, that they did not see him.

One of them was a short fat man, in the dress of a farmer. His round and rosy face seemed to be full of good cheer and good humour; but bore no great signs of intelligence. He was speaking to an untidy looking woman, whose manner was expressive of a sort of low familiarity, not however unmingled with symptoms of servility and cringing.

"Never mind, Nanny," said the farmer, "never mind—neighbour Oldacre is, I must needs say, a little hard upon the poor—but never mind; I shall take to the books in a fortnight's time, and then things will be better." "But you know, master," said the woman, "if you could but manage that little job for us, we should hardly trouble the parish at all." "Well, I'll do what I can," answered the farmer; "my being a parish-officer, will help." The woman was going to reply, but happening to see Mr. Stanley, she drew back from the stile, and allowed him to pass on.

Trifling as the occurrence was, Mr. Stanley happened to mention it to his friend at the parsonage, as they were sitting together after dinner. Upon his describing the figure and face of the farmer, "Yes," said Mr. Hooker, with a smile, "that must have been my parishioner, Farmer Barton. He is, as you describe him, a good-humoured looking fellow, and it has always been the height of his ambition to be reckoned a *good-natured* man."

"I cannot much blame him for that," replied Stanley; "*good-nature* is a most amiable quality, and I heartily wish there was more of it in the world than

there is."

"In that wish I cordially agree with you," said Mr. Hooker; "if by *good-nature* you mean a genuine spirit of kindness or Christian benevolence, which prompts a man to do whatever good he can to the bodies and souls of all within his reach. The *good-nature*, however, of Farmer Barton is not exactly of this description. It springs from a love of low popularity, from a wish to gain by whatever means the good will and good word of all descriptions of people. This wish leads him to assent to whatever is said, and to accede to almost every request, unless it immediately touches his pocket. To that indeed his *good-nature* does not always extend. In his fear of being thought *ill-natured*, he very often loses sight of duty, and his dread of offending or of contradicting those who happen to be *present*, makes him not unfrequently forget what is due to those who are *absent*."

The conversation was interrupted by the entrance of the servant, who came to tell his master that Farmer Barton wished to speak with him. "Pray shew him in," said Mr. Hooker; "but I am unable to guess what his business can be."

The farmer came in, and, upon Mr. Hooker's asking him what he wanted, replied, "Why, it is only to get you to put your hand to this bit of paper." "Let us look at it," said Mr. Hooker; and then casting his eye over it, added, "This I see is an application to the magistrates, to set up a new public house in the village, and a recommendation of Robert Fowler as a fit man to keep it." "Yes, Sir," replied the farmer; "poor Bob since he got the hurt in his arm has never been able to do the work of another man, and he and Nanny have begged me and some of the neighbours to help him to set up a public house, as a means of keeping him off the parish."

"And do you, Farmer Barton, honestly think," said Mr. Hooker, "that we *want* a public house here? You know that there is hardly any thoroughfare through the village; and even if there was, we are but two miles from a market town, where there are inns and ale-houses in abundance."

"Why I can't say there is any particular want of it," said Barton. "But Fowler's family is likely to be a heavy burden to the parish."

"The parish, I am satisfied," rejoined Mr. Hooker, "would be no gainer in the end. Don't you suppose that many of the labouring men would often, after their day's work, go to the ale-house, instead of going home; and spend there, some part of the money which ought to find food and clothes for their wives and families? A country ale-house is too often found to be attended with raggedness and hunger in the women and children; and I know that this is the opinion of the poor women themselves. Besides, don't you remember, what drunkenness and quarrelling we used to have before Tomkins's house was put down?"

"Why, I must say, that the men have been more quiet and sober of late."

"As clergyman of this parish," said Mr. Hooker, "I shall never assist in setting forward a measure, which I think would be hurtful to my parishioners: and I must own, that I am surprised to see that so many sensible and respectable men have signed their names to this recommendation."

"Why a man don't like to seem *ill-natured*," said the farmer.

"We must not," replied Mr. Hooker, "for the sake of assisting one man or one family, do that which would be prejudicial to the whole parish. And besides, I thought that Fowler was one of the most drunken, idle fellows in the village."

"Why to be sure," said the farmer, "he does like drink better than work."

"And yet you and your brother farmers are here ready to certify that he is of good fame, sober life and conversation, and a fit and proper person to be intrusted with a licence! Do you not see that you have all set your hands to a direct falsehood?"

Barton looked foolish, but added, "Why one don't like to refuse such a thing—and when others do it, it would look so *ill-natured*."

"And so, for fear of being thought *ill-natured*, you can not only set your name to a lie, but give a helping hand to a measure, which by your own acknowledgment would be likely to increase the poverty as well as the immorality of many of your poor neighbours. Indeed, indeed, Mr. Barton,

an English farmer ought to have had more manliness of character than this comes to."

"But then poor Bob is such a *good-tempered* fellow; and besides, you know, he is half disabled for work!"

"Yes, he received his hurt in the very act of breaking the laws of the land by poaching, and I do not think *that* a reason for putting him in a situation in some respects above that of the generality of cottagers."

Farmer Barton found that he was not likely to succeed in the object of his visit; and saying with a smile, "Well, Sir, I did not think you had been so hard-hearted," quitted the room.

"There! Stanley," said Mr. Hooker, "that's the way of the world. Most of the men who have signed that certificate are, as times go, decent and respectable men, and would, I doubt not, pretty much agree with me as to the probability that both poverty and immorality would be increased by the establishment of an ale-house in the village; but yet for the sake of being *good-natured* to an individual, they set forward a measure, which they think will be generally pernicious; and set their hands to a lie, rather than refuse an unreasonable request. Their *good-nature*, to be sure, is not confined to Fowler as its only object. Some of them, probably, wish to be *good-natured* to a brother farmer, who is the owner of the house; and some think that they shall do a kindness to the brewer, who will supply it with beer."

"But what," replied Stanley, "shall you do in this business?"

"Why, I don't very well know," said Mr. Hooker. "You have been acquainted with me long enough to be assured, that I would suffer my hand to be cut off, rather than set it to a palpable falsehood;—and that I would never take any *active* step in assisting a measure which in my opinion will be hurtful to my parishioners.—But perhaps something of the same sort of weakness which I blame in others, may prevent me from taking any *active* measures *against* it. I am not fond of going into public, or of encountering the bustle of the justice-room.—Perhaps I shall be *passive*, and try to quiet my own conscience by saying, that things must take their course: that it is not for me to come forward in opposition to the declared wish of most of the respectable part of my parishioners."

"But surely the magistrates will not set up a new public house without the signature of the clergyman to the certificate?"

"The new Act requires the signature *either* of the clergyman, *or* that of the majority of the parish officers, together with four reputable and substantial householders;—or that of eight respectable and substantial householders. Fowler's certificate has all the parish officers but one, and other names in abundance, and *good-nature* will prevent any one from saying that some of those names are neither respectable nor substantial. The magistrates will see that the requirements of the Act are complied with, and they will perhaps feel like me;—they will be unwilling to incur the odium of opposing the wishes of all those *respectable* and *substantial* personages, and thus *good-nature* may induce them to sign the licence."

"At all events," said Stanley, "you will be able to keep Fowler in order by the penalties of the new Act. The old system of absolutely forfeiting the recognizance was too severe to be acted on."

"Perhaps," said Mr. Hooker, "now and then, in some flagrant case, by which some individual is *personally* injured, these provisions may be called into play. But how seldom do you hear—in the country at least—of penalties being enforced from a sense of public duty? *Good-nature* is always against it; and the man who from the purest motives endeavoured to enforce them, would be sure to have all the host of the *good-natured* arrayed against him."

Two days after was the licensing day: the *good-natured* Barton having undertaken the patronage of Fowler's application, set out in good time to advocate it at the justice-meeting. He had got about three quarters of a mile from the village, in his way to Chippingden the market town, when he was overtaken by Mr. Bentley, one of the magistrates.

"You have a dreadful road here, Farmer Barton," said Mr. Bentley. "Who is your surveyor?"

"Why, I am at present," replied Barton, "and as we are a little behind hand with the duty, I am afraid that I shall have to go on for another year."

"Then why do you suffer the road to continue in this state? The ruts are so deep, that it really is hardly safe."

"It is all occasioned by that high hedge," answered the farmer, "which keeps off both sun and wind.—And besides, from there being no trunk or tunnel in that gate-way, the water of the ditch is thrown into the road. To be sure it *was* pretty dirty in the winter, for all we buried so many stones in it." "Then why was not the hedge cut, and a tunnel made in the gateway to carry off the water?" said Mr. Bentley.

"I did once give Farmer Dobson a hint about it," answered Barton, "but he says, that the hedge is not above nine years' growth, and that he shall have better poles by leaving it a few years longer."

"But you know very well," replied the magistrate, "that your warrant empowers you to require him to cut it, and if he refuses, to do it yourself at his expence."

"I know that well enough," said Barton, "but that would be so *ill-natured* and unneighbourly-neighbourly, that I could not bear to think of it."

"And so," rejoined Mr. Bentley, "the necks and limbs of his Majesty's subjects are to be endangered, and the whole neighbourhood put to inconvenience, for the credit of your *good-nature*? A man in a public office, Mr. Barton, should always execute the duties of that office with as much civility and kindness as possible; but he must never neglect his public duty, for the sake of gratifying any private individual whatever.—And look! what business has this dunghill here? your warrant tells you that nothing should be laid within fifteen feet of the middle of the road—and this dunghill is so close, that the road is ruined by the moisture proceeding from it. And see how the farmer has cut the road to pieces by drawing out his dung in the wet weather."

"To be sure, what you say is true, but the field won't be ready for the dung till the spring."

"Another sacrifice of the interests of the public to private convenience!—And here again—you'll think and call me a troublesome fellow, Mr. Barton—but why do you suffer these heaps of stones to be so forward in the road? They are absolutely dangerous."

"Why the men who work on the road like to have them *handy*."

"As they are paid by the day it can make no difference to them, and even if it did, you must not endanger the safety of travellers from a *good-natured* wish to humour your workmen—I suppose the same reason induces you to allow them to put in the stones without breaking them?"

Barton acknowledged that it was. Mr. Bentley charged him again not to let his *good-nature* make him forget his duty to the public—"But," added he laughing, "perhaps I must confess that it is some feeling of the same sort, which keeps me from fining you five pounds, as I might and ought to do, for these neglects of your duty as surveyor."

They now reached the town, and happening to use the same inn, rode into the yard together. Fowler and his wife, who were already there, augured well from this circumstance—and Mr. Bentley was hardly off his horse, when Nanny accosted him in a wheedling tone, with, "I hope, Sir, you'll be so kind as to *stand our friend* about this licence."

"We shall see about that presently," said Mr. Bentley, as he walked off, wishing to cut short applications of this nature till he got into the justice-room. He found his way stopped, however, by two or three poor women from the village near which he resided. "Well!" said he, "and what brings you all to Chippingden?"

"Why, Sir, we want a little of your kindness."

"My *kindness*! why can you find none of my *kindness* at home?"

"O yes, Sir, you are always ready to assist a poor person yourself, but we want you to *stand our friend*, and order us a little more relief from the farmers."

"That, my good woman, is quite a different story. As a magistrate I must not be a *friend* to any one person more than to another; but must endeavour to act without favour or affection either to rich or poor. With respect to parochial relief, our business is to consider, as well as we are able, what the laws require and allow, and to act accordingly. Poor people often apply to us in great distress, and the relief which we can order seems but very little. If we listened to our own feelings, our own *good-nature* as you would call it, we should often be glad to order much more, but we must not indulge

such feelings at another man's expense—we must not be *good-natured* with other people's money."

"But, Sir," said Betty Horseman, "I only wanted about a shilling a week more, and I'm sure that can't hurt the farmers."

"Whether it is much or little," said Mr. Bentley, "we cannot order more, than the law, in our opinion, appears to require. Knowingly to order more than that, is to rob those out of whose pockets the poor rates are paid. You would not wish me, Betty, to help you in picking a man's pocket."

"But it is so little that I ask for," said Betty, still harping upon the same string.

"We may not pick a man's pocket of sixpence, any more than of a hundred pounds. Your application shall be heard presently, Betty, and we will give it the best attention we can. If we think that you ought to have more, we will order it.—But you must remember, that if you have a shilling a week more, every family in the like circumstances will expect the same, which will make your shilling a week a pretty round sum. In short, I am always glad as far as I can to help a poor person out of my own pocket, but must consider well before I help him out of the pockets of other people."

Mr. Bentley now joined his brother magistrates in the justice-room. The licensing business came on first; and the licences to the old established houses having been renewed, the applications for *new* houses were taken into consideration. Fowler produced his certificate.

"This certificate," said Mr. Hale the chairman, "has not the clergyman's name; how happens that?"

Farmer Barton was at Fowler's elbow, and immediately answered, "Mr. Hooker has laid down a rule not to set his hand to an application of this sort, and could not break through it—but I'm sure he has no objection."

"And besides," said one of the justices, "if my memory does not deceive me, there was a man of that name in your parish who was a noted poacher."

"Why, I must confess," said the farmer, "that some time back the poor man was led by distress to go out once or twice; but he has, long ago, given it

up, and is now quite an altered character.—When a man has seen his fault, and turned over a new leaf, I am sure, gentlemen, that you are too *good-natured* to bring it up against him."

The justices still hesitated; but Barton and two or three of the farmers of the village represented to them that there always used to be a public house; that it was in many respects inconvenient to be without one; and that in this instance, it would give occupation and maintenance to a poor family. At length the magistrates said, that in general they were not disposed to increase the number of ale-houses, but that they would give way to the declared wish of almost all the leading men in the parish. In a case of doubt, they naturally leant to the side of *good-nature*. Accordingly the licence was granted.

Fowler was overjoyed at his success, and after making his acknowledgments, set off, first to the carpenter, and then to the painter, to give directions for a sign and its appendages. After these matters of business, he could not think of returning without drinking the health of the magistrates at the Red Lion.

Several friends dropped in to congratulate him; and when he thought about going home, he was not quite able to walk straight. The butcher's boy, who had made one of the party at the Red Lion, offered to give him a lift in his cart. They set off in high glee, and the exalted state of their spirits induced them to urge on the horse. Though the night was dark and the horse sometimes swerved to one side of the road and sometimes to the other, yet the light colour of the road served for a guide, and they felt that as long as they kept to that they were safe. They were mistaken, however. They were within a mile of Inglewood, and had got the horse almost into a gallop, when all at once the wheel came upon one of the heaps of stones, which had been shot down in the *quartering*, and the cart was overturned. Peter, the butcher's boy, called out that he was killed; but having got up and shaken himself, and found that he had received no sort of injury, he burst into a loud fit of laughter.

Poor Fowler, however, lay groaning in the road, unable to stir. He was severely bruised, and both the bones of his right leg were broken. Peter scratched his head, and was quite at a loss what to do, when luckily Farmer

Barton and one of his neighbours came to the spot, in their way back from market. They extricated the horse, which, having put his foot in the deep rut, had fallen with the cart, and then raised the cart without difficulty. It was not, however, so easy a matter to get Fowler into it. He cried out from pain every time that they took hold of him, and sometimes begged that they would leave him to die where he was. At last, however, they succeeded, and at a slow pace he was conveyed to his humble cottage, which was soon to assume the dignity and importance of a public house.

His wife helped to get him to bed, though not without reproaching him with some asperity for staying so long at the Red Lion after he had sent her home. Having taken as much care of him, as in her opinion he deserved, she hastened down stairs to comfort herself with some tea, of which two or three of her neighbours, who had been brought to the house by the tidings of the accident, were invited to partake. The condolences and lamentations were soon over, and they fell into the usual train of village gossip. The hardness of the times, of course, was one of the topics of conversation. "Well, Hannah," said one of the party, "and what did you get from the justices?"

"Oh! there's no use in a poor person's going to them," said Hannah, "they're all for the farmers?"

"I wonder to hear you say that," said Nanny, who was naturally disposed to be in good humour with the magistrates, who had just granted a licence to her husband; "I wonder to hear you say that, for as I was going out of the room, I fell in with two or three overseers, who were saying just the contrary. They were complaining that the justices were ready to hear all the idle stories of the poor about wanting relief, and that they were much too apt to order some little addition. In fact, they said, that they were all in favour of the poor; and the farmers could not stand it."

"If the poor complain that they were in favour of the farmers, and the farmers that they favoured the poor," said an old man sitting in the chimney corner, "I dare say they pretty nearly did the thing that was right between both parties."

"Well," said Hannah, "if I was a justice, I could'nt bear that the poor should think me *ill-natured*. Be it how it would, I'd take care to have *their* good

word, even if I did now and then order a trifle more than was quite right."

"What should you say, Hannah," said the same old man, "of a justice who acted contrary to law for the sake of a sum of money?"

"What! a bribe! Why I'd have him turned out before he was a day older."

"And is not acting contrary to law for the sake of any one's good will, or good word, pretty much the same as doing so for a bribe? A magistrate is sworn to do justice, according to law, to the best of his knowledge."

All the women, however, consoled themselves with the near approach of the time, when the poor would have to apply for their weekly allowances to Farmer Barton instead of Farmer Oldacre; it being the custom of the parish that the overseers should divide the year between them, each taking the trouble of the office for six months.

"Yes, indeed," said Hannah Bolt, "it will be a happy day for us poor creatures, when Mr. Barton takes the books;—Farmer Oldacre was always a hard man to the poor."

"Farmer Oldacre a hard man to the poor!" said old John Truman, who came in at the moment from the sick man's room—"Farmer Oldacre a hard man to the poor! I'm sure you're an ungrateful woman for saying so; as I should be an ungrateful man, if I allowed you to say it without taking you to task. —I've worked for him now these seventeen years, and a better or a kinder master cannot be. Didn't I see you, Hannah, day after day, when your little boy was ill, going to his house, sometimes for a little milk, sometimes for a little made wine, and did he ever refuse you? did he ever refuse *any* poor person, who was really in want, any thing that he was able to give?"

"I can't say but that he's ready enough to help a poor body with any thing he has himself; but then if one asks him for a little more parish relief, he's so terrible particular, and asks so many questions, that it's quite unpleasant, and perhaps we can get nothing after all."

"In short," said John, "you mean to say that he is liberal and kind in giving from his own pocket, but careful and cautious how he makes free with the pockets of other people. And then again—who employs so many men as Farmer Oldacre? I'm sure I have often known him in the winter try to find

out jobs for the sake of keeping the men at work; and after all I believe, that he feels the change of times as much as any man, and that he and his family allow themselves little beyond bare necessities. And even with respect to parish relief, I believe that the *old* men and women, who are really past work, are better off when Farmer Oldacre has the books, than at any other time."

"But then," answered Hannah, "Farmer Barton is so *good-natured* when we go to him. He says that a shilling or two cannot signify to the farmers, and is not worth thinking about."

"I believe it would be better for all parties," replied Truman, "if the able-bodied poor thought less of running to the parish, and more of depending, under God's blessing, on themselves. When I was young, a man would have been ashamed of begging for parish relief. Indeed, the law was, that those who were relieved were to be marked by a badge. I know that I contrived to bring up a family of seven children without being beholden to any body. For a few years it was certainly hard work, but God helped us on."

"But wages," said Nanny Fowler, "were better in those days."

"Compared with what they would buy, perhaps they were, but their being low now is, I take it, partly owing to the poor rates."

"Why how can you make that out?" cried the whole party.

"In the first place, can you tell me, why wheat is so cheap just at present? It was, you know, ten shillings the bushel, and indeed sometimes a great deal more—it is now less than five."

"Why it's cheap to be sure, because there is such plenty of it."

"And is it not the over-plenty of labourers, that makes labour cheap? I remember this village when there were not more than fifty labourers' families, each with a cottage to itself; now there are upwards of eighty families, and sometimes two crammed together in one house. I have read in the newspapers, that the people throughout England have increased in the last twenty years thirty-two in every hundred—that is, where there were but ten, there are now more than thirteen."

"But what has that to do with the poor rates?"

"Why do not you think that the poor rates are an encouragement to early marriages?"

"And what then," said Hannah; "did not the Almighty say, *Increase and multiply*?"

"The command to *increase and multiply and replenish the earth*, was given—*first*, when there were upon the face of the whole earth no men and women at all, excepting the first pair: and *again*, when all mankind had been destroyed, with the exception of the family of Noah. The world was pretty well empty of inhabitants then, and wanted *replenishing*. But the case is different in an old inhabited country, which is already so *replenished*—so full and over-full—that the people stand in each other's way."

"But surely, John, you are not for preventing marriages?"

"Heaven forbid!" said the old man, wiping a tear of thankfulness from his eye; "Heaven forbid! It is to marriage that I owe the greater part of the happiness that I have enjoyed in this life; and marriage, I trust, has assisted in preparing me, through divine grace and the merits of my Redeemer, for happiness in the life to come. I know too who it is that has said, *Marriage is honourable in all*.—No, no, I am no enemy to marriage, I am its warmest friend. But then, as the Prayer-Book tells us, there are *two* ways of engaging in marriage. Men may either enter upon it *reverently, discreetly, advisedly, and in the fear of God*; or else they may engage in it *inadvisedly, lightly, and wantonly, 'like brute beasts that have no understanding.'* I am afraid that now-a-days young people are more apt to engage in marriage after the latter manner, than after the former. When I was young, men generally did not like to marry—I'm sure I did not—till they had secured a bit of a cottage to put a wife in, and a few articles of furniture, and perhaps a few pounds to begin the world with. Now boys and girls marry without thought and reflection, without sixpence beforehand, and trust to the parish for every thing—house, goods, clothes, and the maintenance of their children. As for the parish finding houses for all that wish to marry, it's what can't be done. —No, no, I don't want to prevent their marrying, I only want them to wait a very few years, that they may have a better chance of happiness when they

marry. We all know, that *when want comes in at the door, love is very apt to fly out at the window*; and parish pay is but a poor dependence after all.

"And why should they not wait? Those, who are better off in the world, are for the most part forced to wait a good number of years. The sons of the farmers, of the tradesmen, and of the gentlemen, generally wait, I think, till they are nearer thirty than five and twenty. Look at Squire Bentley's family: there's his eldest son that is the counsellor, who, as they say, has been for some years engaged to one of Mr. Hale's daughters; he is now, I take it, upwards of thirty, but he waits till they have a better chance of maintaining a family. There's his second son, who is to be a physician; and the third in the army; both I dare say would be glad enough to marry, if they could marry with any sort of prudence.—It is because the poor think that the parish must find every thing, that they marry without thought or care; and then the numbers of the people increase till there are more hands than work; and that makes wages so low.

"There's another way in which the poor rates keep down the price of labour. A man is out of work. He goes round to the farmers; but they all say that they don't want him: they have hands more than enough already. He then goes to the overseer for employment.—Now the parish—if bound by law to find work for him at all, about which there seems to be some doubt—is only bound to pay him enough to keep him from starving, and for that may require a full day's work. The farmers of course know this; and as in these times it is natural for them to wish to get hands at as low a rate as possible, one of them tells this man that he will give him a trifle more than the parish, though still a *mere trifle*, and turns off one of his regular workmen to make way for him; and so it may go on, till all are brought down to the same low key.—Or perhaps the farmers will pay all the labourers, either in whole, or in part, out of the poor rates. This I take to be a very bad plan for the farmers in the end; for as men will seldom do more work than they are paid for, the work will not be done so well or so cheerfully; and besides, it sadly breaks the spirit of the labourers. In short, I wish, as I said before, that the poor depended less upon parish pay, and more upon themselves."

"But, John," said Hannah, "you are not for knocking up the poor laws altogether?"

"By no means," answered John: "I am in one sense a poor man myself; and I am glad that there is such a provision for those, who can do nothing for themselves, and for those who are thrown back by a severe sickness, or by some accident. For myself, I hope that, by the blessing of God, I shall never be forced to stoop to ask for parish relief. As my wife and I contrived to bring up a family without any help from an overseer, so when our children were old enough to get out, and take care of themselves, we began to think of putting by a trifle against old age. The savings bank notion has given us a lift, and I think that I have that there, which will keep me from being a burden to any one. As times are now, a man with a large family can't help going to the parish, and no one can blame him for it—I only wish that times were such as to enable him, with industry and prudence, to look for maintenance to no one but himself and God Almighty."

By the time that old Truman had finished this *dissertation* on the poor laws, the surgeon had arrived. He examined Fowler's leg, and found the fracture to be as bad a one as well could be. It was attended too with a considerable degree of fever, which was increased by the heated state of the blood, occasioned by excessive drinking.

The next day he was delirious, and the fever had increased so much, that but slight hopes were entertained of his recovery. He remained for some days in this state, hanging between life and death, till at length the fever abated. The delirium too was at an end; but it left him in a state of the most deplorable weakness.

Nanny Fowler never had bestowed one serious thought upon a future life; but some of her neighbours told her, that with her husband in such a dangerous condition, she ought to desire the parson to come and see him. This she accordingly did.

Mr. Hooker, at his two or three first visits, found both body and mind so weakened, that he did little more than pray by him. Neither Fowler nor his wife entered much into the meaning or spirit of his prayers, but still they were flattered and pleased by the attention of their pastor.

For many years Fowler had hardly set foot in church, excepting once to attend the funeral of a relation, and twice as godfather to the children of two of his friends. Though he had not shewn any positive disrespect to Mr.

Hooker to his face, yet he was in the habit of laughing at him behind his back, and of trying to turn whatever he did or said in the execution of his sacred office—and indeed his office itself—into ridicule. In this, according to the opinion of his thoughtless and profligate companions, he succeeded tolerably well; for he had a turn for low humour; and it is sometimes found, the more sacred any thing is, the greater is the effect of representing it in a ludicrous point of view, to those who are unrestrained by any sense of decency or of religion. From Mr. Hooker he had never received any thing but tokens of kindness, but he disliked him, because he knew that he disapproved of his manner of going on, and still more, for one or two admonitions which he had received from him. He now felt ashamed of his former disrespectful behaviour towards his worthy minister.

The fever having entirely left him, Mr. Hooker determined to take advantage of the opportunity which this accident afforded, for the purpose of endeavouring to bring Fowler to some proper sense of religion. He accordingly often talked to him in the most serious manner, trying both to inform his understanding, and to affect his heart.

One day when he called, he found Barton sitting by the bed side. The farmer immediately got up to go away; Fowler, however, begged him to stay; and Mr. Hooker was not without hopes, that what he said might not be entirely lost upon Barton, of whose religious sentiments he had but an unfavourable opinion.

After making use of the prayers in the Visitation Office, he represented to Fowler the folly of living without God in the world; the hateful nature of sin; and the awful consequences of continuing in sin without repentance. He spoke of the great atonement, but told him that the benefits even of that would be lost to those who continued hardened and impenitent. He added a few words upon the particular vice of drunkenness, upon its tendency to lead on to almost all other sins without exception, and upon its dreadful punishment in the world to come, since *drunkards can not inherit the kingdom of God*.

Fowler appeared to be attentive, and to feel what was said, and Barton looked every now and then a little uneasy. His uneasiness was occasioned, not by the slightest degree of apprehension for his own religious interests,

but by the wound which his *good-nature* received, at hearing such strong things said. The farmer accompanied Mr. Hooker down stairs; but the moment he had quitted the house, exclaimed, "I wish, Nanny, you would not let the parson come to your husband any more. I'm sure it's enough to make a man ill to hear him talk." "Why, what's the matter?" said Nanny, "what's the matter?"

"Why, he has been talking about his soul, and getting drunk, and heaven, and hell, and I know not what besides; I'm sure, I thought it very *ill-natured* of him. It's bad enough for poor Bob to have broken his leg, without being troubled with such melancholy thoughts. And what's the use of it? There's no chance of his dying this bout, and there can be no occasion for his making himself uneasy with these church-yard thoughts yet."

"Surely you are not in earnest, neighbour," said Farmer Oldacre, who had called in to enquire how the broken leg was going on; "you cannot really mean what you say."

"Yes, but I do though," replied Barton, "and I say again, it was very *ill-natured* of Mr. Hooker."

"I always thought," said Oldacre, "that you professed and called yourself a Christian."

"As good a Christian as yourself," rejoined Barton, with some quickness; "aye, or as Mr. Hooker *either*, though, perhaps, I mayn't talk so much about it as some people."

"Well, don't be angry," said Oldacre calmly, "but just listen to me for two minutes. If a Christian, you of course acknowledge the Scriptures to be the word of God?"

"To be sure I do."

"Well—you know—the whole parish knows—that poor Bob Fowler was leading a most ungodly and wicked life."

"No, I do *not* know it; poor Bob was nobody's enemy but his own; and if he did get drunk now and then, what was that to any body else? I don't call that being wicked."

"And what *do* you call being *wicked*?"

"Why, I call a man wicked, when he robs and steals, or commits murder, or—let me see—let me see—when he takes a false oath before a justice—or—when he slanders his neighbours."

"These, certainly," answered Oldacre, "are instances of great wickedness; but you seem to confine the word *wickedness* almost entirely to offences, by which *men* are injured; now I call a man *wicked*, when he lives in the wilful and habitual neglect of any part of his duty; and since the Scriptures tell us, that the first and chief part of our duty is our duty towards God, I particularly call a man wicked when he lives in the open neglect of that duty—when he leads, in short, an ungodly life."

Barton made no answer, but seemed to be waiting to hear what was to come next.

"Now as for poor Bob Fowler, you know very well that he never went to church, never thought of keeping holy the Lord's day, that he was in the constant habit of profane swearing, that he never spoke of religion but to laugh at it, and that instead of having God in all his thoughts, he lived in a total forgetfulness both of him and of his laws. Now the Scriptures tell us, over and over again, that *the wicked shall be turned into hell, and all the people that forget God*. If these words of Scripture be true—and you acknowledge yourself that they are so—Fowler was certainly in a dangerous state. Now, neighbour, suppose you were to see a blind man walking right on to the brink of a pit, and ready to fall into it, should you think it *ill-natured* to tell him of his danger? And is it *ill-natured* of Mr. Hooker, to try to save a man from falling into the pit of destruction?"

"But why should he do it at such a time—when Bob has a broken leg to vex him?"

"I know," replied Oldacre, "that Mr. Hooker did sometimes speak to him when he was in health; but Fowler was either sulky, or turned it into joke: he was one of those, who *sit in the seat of the scornful*; it was like *casting pearls before swine, which turn again and rend you*. His present confinement offers an opportunity for giving him some notions of religion; and our good minister, who is always on the watch for opportunities of

being of use, most likely felt, that if this opportunity was not taken advantage of, he might never have another."

"But is it not enough to drive a man to despair," said Barton, "to talk to him about death and judgment, and future punishment?"

"It is rather the best way to save a man from despair. Mr. Hooker speaks to him of future misery, in order that he may escape it. I dare say that he tells him, as he tells us in church, that if he will but repent of and forsake his sins, full forgiveness is offered, through the mediation of the Redeemer. A man who wilfully goes on in a worldly, ungodly course of life, has certainly nothing before him but a *fearful looking for of judgment and fiery indignation*. Surely it is not *ill-natured*, but rather the kindest thing that can be done for such a man, to try to persuade him to flee from the wrath to come, by changing his course of life by the aid of God's grace, and by seeking for God's mercy through Christ, before the gates of mercy are closed for ever."

There was a pause of some minutes. Barton, however, did not like to give up his notions of *ill-nature*, and returned to the charge. "Still, I must say, neighbour Oldacre, that the parson speaks of these things much too plainly and too strongly; and, to tell you the truth, that is the reason why I so seldom go to hear him in church. It would not look well, you know, for a man like me *never* to go to church at all, so I drop in sometimes when there is no sermon. I like to be *good-humoured* and pleasant, and don't like to think of these melancholy subjects until I've occasion."

Oldacre found that he was impenetrable by any thing that *he* could say, and was not inclined to resume the conversation, and went up stairs to Fowler to ask him how he was.

Barton quitted the house, but the door was hardly closed, when his *good-nature* was put to a fresh trial of a different description. He was met by a stranger, who, having asked him whether his name was Barton, and received his answer that it was, put into his hands a paper, which he found was a notice to him as surveyor, that a certain part of the road in the parish had been indicted at the Quarter Sessions which were just over, and a true bill found.

The fact was this.—A gentleman, who was going to the Sessions on business, had occasion to travel along the road, the bad state of which Mr. Bentley had pointed out to Farmer Barton. One of his coach-horses shied at a heap of dung lying close to the road side, the coachman whipped him, the horses sprang forward, but in crossing the deep ruts, one of the fore springs of the carriage snapped, and the near horse was thrown down, and cut both his knees. The gentleman proceeded slowly to Chippingden; and while his servants were getting the spring made safe for the remainder of his journey, had the worst part of the road measured, and then travelling on to Sessions in the full heat of his anger and vexation, preferred a bill of indictment against the parish of Inglewood.

This Farmer Barton thought the most *ill-natured* proceeding that ever was known; and in the first warmth of his indignation said, that there should be no *putting off*, but that the parish should try it out at the following Sessions. He was still surveyor, for he had so entirely neglected calling out the statute-duty, and indeed every part of his office, that he was ashamed to attend the justice meeting, which was held for the purpose of appointing new surveyors; and felt pretty sure, that his non-attendance would not be taken notice of. The magistrates, every now and then, threatened *stoutly*, and talked of fining the absentees, but they would not be so *ill-natured* as to carry their threats into execution; and the comfort and convenience of the public, and the real interests of the several parishes themselves, were sacrificed for the credit of their *good-nature*.

Fowler's leg, meanwhile, continued to mend, and he was able to get down stairs, and attend to his new business. What Mr. Hooker had said to him, produced considerable effect upon his mind and conduct. But though he left off drinking himself, yet from his former habits and character he could not be expected to possess much authority over those who resorted to his house. Many of the poor never entered the public house at all; many went to it now and then for a pot of beer to drink in a quiet family way at home; but a few of the married men, and several of the young ones, spent there many of their evenings, and most of their money.

Many little disturbances consequently took place in the village. One evening in particular, Tim Nesbit came from the public house so drunk, and was so noisy and troublesome, that some of the neighbours talked of having

him fined, or set in the stocks. "Surely you wouldn't be so *ill-natured* as that comes to," said Barton. "When a man robs and steals, punish him to the utmost; but drunkenness is a *good-natured* fault, and the drunken man is nobody's enemy but his own."

"Nobody's enemy but his own!" said old Truman, who happened to be standing by, "I think a drunken man the enemy of every body. He is ready to quarrel with every body that comes in his way, and to do all sorts of mischief."

"Yes," replied Barton, "but when a man don't know what he is doing, he has a right to be excused."

"Now I say just the contrary," answered Truman. "When a man chooses to throw away his reason, and to bring himself down to a level with a beast, he must take the consequences. Drunkenness, instead of being an excuse for any fault, is an aggravation, and the law of the land says the same. I heartily wish that the laws against tippling and drunkenness^[j] were more frequently put in execution."

[j] If any person (with a few particular exceptions) shall continue drinking or tippling in a public house, he shall forfeit three shillings and fourpence to the use of the poor, or be set in the stocks for four hours.

Any person convicted of drunkenness shall for the first offence forfeit five shillings to the use of the poor, or be set in the stocks for six hours. Upon a second conviction the offender shall be bound, with two sureties, to be thenceforth of good behaviour.

"These laws," replied Barton, "cannot, generally speaking, be put in force, unless some one will *inform*, and that would be so *ill-natured*. And besides, every one hates and cries out against the very name of an *informer*."

"I grant you," said Truman, "that when a man turns *informer* from spite—or for the sake of getting money—or from a view to private interest of any sort—he may perhaps deserve to be disliked. But a man who, *after fair notice*, *informs* against an offender from a sense of public duty—with a view to check a bad practice which is hurtful both to society and to those who are guilty of it—or from a sincere zeal for the interests of morality and religion, is a benefactor to the community. The lawless and profligate, who would be glad to get rid of all the restraints of every sort, will of course try to run him

down; but he ought not to mind that, and he certainly deserves the thanks of all the friends of good order and morality."

Not only was the quiet of the village of Inglewood sometimes disturbed by drunken *rows*, but many little acts of mischief were committed, not from any particular spite, but in the mere wantonness of drunkenness. The farmers too found some of their men less disposed to work than formerly, and more disposed to be saucy; and they saw the wives and children of some few growing more and more ragged and miserable. They consoled themselves by abusing the justices for consenting to the establishment of the alehouse, and by blaming their minister for not taking more active measures to prevent it; and said for themselves, that they would never have set their hands to the certificate, if at the time they had not felt sure that the licence would not be granted.

Fowler's friends, however, determined to make it as good a thing for him as they could. His accident, and long confinement in consequence of it, had thrown him back, and they wished, they said, to give him a *start*. They resolved to have some *pastime* in the village, and tried to make up a purse for two prize fighters, who resided in the neighbourhood. Barton entered zealously into the scheme, and took care to have the fame of the projected amusement spread through the adjoining villages. Having occasion to call on Mr. Hooker on other business, he said that he hoped that he did not object to what was going forward. Mr. Hooker replied, that "he disapproved of it most decidedly."

Barton's *good-nature* was immediately up in arms. "Surely, Sir, it's very hard that the poor may not have a little amusement now and then. Our only object is, to give them a day's pleasure, and at the same time to give a little help to Fowler in his business, after his sad accident, which has thrown him back so unluckily."

"Nobody," said Mr. Hooker, "can be more friendly than I am to the amusements of the poor; provided they are *innocent*, and do not, almost necessarily, lead to immorality and sin. You know, Mr. Barton, as well as I do, that the *pastime*, as you call it, which you propose, will be attended with a great deal of drunkenness. Your avowed object is, that Fowler should sell as much beer and spirits as possible. I need not tell you, that drunkenness is

not only a great sin in itself, but that it also leads to sins of every description. You know very well too, that on occasions of this sort, there is generally a great deal of swearing, a great deal of improper language, and, perhaps, a great deal of quarrelling. With respect to *prize-fighting*, sensible men have entertained different sentiments. My own opinion is, that it is a positive offence against the laws both of God and man; that it is a most disgusting exhibition; and surely a most improper sight for the women and children, who, in a village, will be spectators of it. I think also, that if one of the combatants should be killed, as is frequently the case, all those who have promoted the battle are parties in the guilt of manslaughter.

"Do not say that I am an enemy to the amusements of the poor. I like to have them enjoy themselves at proper times, and in a proper manner. I can take pleasure in seeing them engaged in a game at cricket, at football, at quoits, or any other manly exercise, provided they engage in it without swearing, or drunkenness, or other vice; but of the amusement now proposed in the village, I disapprove most decidedly."

The disapprobation of the clergyman, however, was not attended to. Barton talked of the parson's *ill-nature* in grudging the poor a little enjoyment, and said it was all of a piece with his finding fault with the poor boys for going to play on a Sunday, instead of going to church or the Sunday school.

The promised day at length arrived. The village was filled with a motley concourse from all the country round, and the fight took place. The men were equally matched, and fought with skill and courage. Both got severely bruised; but one of them received an unfortunate blow under the ear. He fell into the arms of his second, and it was soon discovered that the blow was mortal—he never spoke again. This sad *accident* threw a damp over the amusement of the day, and many repented of the *good-nature* which had led them to promote the *pastime*.

We will not, however, dwell upon this melancholy event, but proceed to the result of the indictment of the roads of the parish of Inglewood.

January came, and the Quarter Sessions. Both parties wished to have the indictment tried at once, and came prepared—the prosecutor with witnesses to prove that the road was very bad and unsafe—and Barton with several *good-natured* men, who were ready to swear, that it was as good a road as

they wished to travel. The parish, however, was beat; and it being proved that frequent representations had been made of the bad state of the road in question, Inglewood was sentenced to pay a fine of fifty pounds, together with all costs, which amounted to forty more.

Farmer Barton hardly knew which was most *ill-natured*, the prosecutor, the jury, or the bench of magistrates. Perhaps he was most out of humour with the *jury*; for consisting, as it did principally, of farmers, they might, he thought, have put their oaths and their consciences a little on one side, where brother farmers were concerned. However, there was no help for it, and the money was to be found before the Easter Sessions.

He returned to Inglewood to console himself with the popularity, which he acquired in the exercise of the office of overseer. His *good-nature* led him to accede to almost every application, but his *good-nature* arose rather from his "fear of offending the importunate, than his desire of making the deserving happy^[k]." The industrious and the modest remained contented with their former pittance; but the forward, and the impudent, and the clamorous, were continually urging their claims for more relief, and seldom urged them in vain.

^[k] Goldsmith.

"I hope, Farmer Barton," said one woman, "you will give me a little more allowance: when bread, and candles, and soap are paid for, there's hardly any thing left for tea and sugar." "Why I suppose then I must give you a trifle more—the parish can't miss it." One petitioner he manfully refused, and told her she must be content with what she had. "And how am I to buy snuff out of that^[l]?" The overseer relented: he loved a pinch of snuff himself. Farmer Oldacre would gladly have filled a deserving old woman's snuff box at his own expense, but not at the expense of the parish.

^[l] Fact.

The liberal allowances granted by Barton, of course, required frequent rates, which it was not very convenient to the farmers to pay. Those, however, who happened to have money by them, paid, and allowed themselves the satisfaction of grumbling. Those who had it not, begged for time, and kept their grumbling to themselves. Barton's *good-nature* did not permit him to

be very pressing. The consequence was, that, as he was neither disposed, nor perhaps able, to advance the money from his own pocket, fresh rates became necessary, and those who *could* pay made up for the deficiencies of those who could not.

Farmer Oldacre was one of the former description; and though he often told his brother overseer, that he was bound in law to levy and expend one rate before he applied for another; yet when his own pocket seemed to be concerned, he would not be peremptory.

Another of those who were always ready with their money, and were consequently entitled to the privilege of grumbling, was Richard Sterling.

Richard occupied five or six acres of land, kept three cows, and got on pretty well by supplying his neighbours with milk. "What, another rate, Master Barton!—why it seems but t'other day that I paid the last."—"It can't be helped, Richard;—the poor must be provided for."—"I know they must," answered Sterling, "and as for those who cannot keep themselves, and are come to poverty without any fault of their own, I should not grudge it them if they had more;—but there are some who might as well help to support me, as I to support them. Pray, what may you give to Tim Nesbit?"—"Why—perhaps the matter of three and sixpence a week."—"Three and sixpence a week?—that comes I think to about nine pounds twelve a-year.—Tim and I were born in the same year; when we grew up we worked for the same master; we married much about the same time, and our families are of the same size. The only difference between us was, that while I tried to put by what I could spare, Tim, whether single or married, always carried good part of his earnings to the ale-house. Now is it not a little hard that I must now be forced to help to maintain him, because he chose to squander away his money? He might at this present time have been every bit as well off in the world as I am; but because he chose to be careless and a spendthrift, I am forced to take bread, as it were, from my own children, and give it to his [\[m\]](#)."

[\[m\]](#) See a lively dialogue to this purpose in that excellent little publication, the Cottagers' Monthly Visitor.

One day, when Barton was going towards his house, he was overtaken by Ralph the butcher's lad, who accosted him with, "Mr. Barton, I want you to

do me a kindness." "What is it?" said Barton. "Why, you must know, that I have some thoughts of marrying, and want the parish just to run me up a bit of a house. Master will give carriage, and I can manage a good deal of the labour myself, so that it will cost the parish a mere trifle."

"*You* going to be married!" said Barton laughing, "why, how old are you?" "Old enough in all conscience, I shall be nineteen come February." "It might be as well to wait a few years longer," answered Barton; "however, I can't wonder at you; and we'll see what can be done."

He accordingly mentioned the subject to his brother overseer, whom he found in the field near his house. "I must say," replied Oldacre, "that I am no friend to these early marriages in any class of society. Young men and women—or rather I should say, boys and girls—take it into their heads to marry, before they can be supposed really to know their own minds. They are struck by something in the outward appearance, or taken by some whim and fancy, and become partners for life, before they have become acquainted with each other's temper or character, and before they have considered how to provide for a family. The consequence too often is, that the marriage turns out unhappily. Among the poor especially, who look to the parish for every thing, these early marriages produce a habit of dependence, which lowers their character and spirit for life."

"What you say, is much about the truth," replied Barton, "but these young people are bent upon marrying, and then, you know, there's no stopping them. Of course they must have a place to be in, and I suppose we may as well run him up a bit of a cottage at once."

"It is a serious thing," said Oldacre, "for farmers at rack-rent to begin building houses for their poor; but I am against it, for the sake of the poor themselves."

"Now I'm sure you *must* be wrong in that opinion," said Barton.

"Do just tell me," answered his brother overseer, "have we already labourers enough to do all the work of the parish?"

"Enough, and much more than enough. You know how puzzled we are to find employment for them in the winter. Indeed, excepting just in hay-

making and harvest, we have always some men to be paid for their work out of the rates."

"Then is not increasing the number a bad thing for the poor themselves, if they already stand in each other's way? And do you not see, that building cottages is just the way to increase them? If you built twenty cottages, you would have them filled in a week's time. We have of late been forced to *double* some families, but that must be so uncomfortable in every way, that people do not like to marry upon such a prospect. But there are plenty of young men and women quite ready to hasten to the altar, if they could be sure of a roof to themselves to shelter them at night^[n]. This of course, would make a lasting addition to the poor rates, would throw a heavy burden on the land, and render it still more difficult for the poor to find work.

^[n] Townsend.

"The cottages that we have I wish to see as comfortable as possible, and would have the poor people who inhabit them take a pride in keeping them neat and clean, and their gardens in nice order; but I am not for increasing the number of them. Such increase, I am persuaded, would be against the interest of the poor themselves."

Mr. Stanley, during a former visit to Inglewood, had often fallen in with Mr. Oldacre in his walks, and got into conversation with him: he happened to come up at the moment, and catching the last words that had fallen from the farmer, said to him, "I suspect, Mr. Oldacre, that you are not very friendly to the system of the poor laws."

"I will not by any means say that," replied Oldacre; "I believe that in every state of society, in a populous and old-inhabited country especially, there always will, and must, be poor. As the Scripture says, *The poor shall never cease out of the land*. I am glad, therefore, that provision is made by law for those who are unable to help themselves. Private charity, in many places, does a great deal; and if there were no poor-laws, would do a great deal more. But if all were left to be provided for by private charity, the kind-hearted would be oppressed by claims, and often give more than they could afford, while the selfish and covetous would contribute nothing. It is right that these latter should be forced to take their share of the burden. In many

places again, if there was nothing but voluntary benevolence to trust to, multitudes would starve, and no civilized country ought to suffer that, if it can help it. Indeed, I wish that we were able to give a larger measure of parochial relief to the aged and infirm, who are reduced to want through no fault of their own. But then, I must say, though I shall be thought *ill-natured* for saying so, that I cannot help seeing that the poor-laws—whether from bad management, or from the peculiar circumstances of the times, I will not pretend to say—have in many ways done no good to the character and the habits of several among the poor."

"I know," said Mr. Stanley, "that many sensible men entertain the same opinion; but, perhaps, you can give me a few instances which may make your meaning more clear."

"Many of the poor," replied Oldacre, "have not been hurt by them, but still preserve the steady, manly, independent character, which becomes an Englishman. But too frequently dependence on parish rates has produced very pernicious consequences.

"The connection between a farmer and his labourers—you will say, that I speak like a farmer, in mentioning that *first*—ought to be advantageous to both—not merely as a contract, by which the employer is to receive so much work, and the workman so much money; but as it tends to produce an interchange between them of kind offices and kind feelings. By many of the labourers this is still felt as it ought to be felt, and they take a pride and a pleasure in working year after year for the same master, and try to obtain his approbation by industry and good conduct. Some of them, however, have no notion of fixing themselves. They care little whether their employer is pleased with them or not, and upon the slightest affront as they call it, or the slightest difference about wages, they are off directly. If one wont employ them, another *must*; or, at all events, they *must* be employed by the parish.

"Again; the natural affection which subsists between parent and child, is strengthened and increased in both—as is the case indeed with brute animals—by the dependence of the children on their parents for subsistence. But now this dependence is, in many instances, removed from the parent to the overseer. On the other hand, when the parents grow old and infirm, the children often might do much to assist them, and if left to

themselves would delight in doing so. But under the present system, if they do it at all, they do it by *stealth*; for *why*, say they, *should we favour the parish*? If they happen to have a little matter of money left them, they are tempted for the same reason to conceal it. Here again they ask, why should they favour the parish? and they will not feel, that the receiving of parish relief, when they have any thing of their own, is a fraud upon the parish, an act of dishonesty.

"Few virtues are more useful in any condition of life than *frugality* and *foresight*. Upon these, however, the poor laws have certainly made a sad inroad: unmarried men, or those, who though married have no families, or whose children have *got out*, while they continue in full health and vigour, might often contrive to lay by something against old age. But this few of them think of doing, for *why should they favour the parish*? The parish must provide for them at any rate, and so they may as well spend their money as fast as they get it. The *future* satisfaction of living on their own means, instead of on parish pay, is not sufficient to stand against the temptation of *present* pleasure.—Savings banks are an excellent institution, but when once a man has quartered himself as a pauper upon the parish, he will not make use of them. Why should he put money into the bank in order to *favour the parish*?—I shall tire you, Sir, I fear," continued the farmer, "but you must let me mention one thing more. *Beneficence* is, we know, twice blessed; it blesses him that gives, and him that takes; but parish relief comes sadly in the way of beneficence. When men are forced to pay so much to the poor through the hands of the overseer, they have neither the inclination, nor, in fact, the power, to give so largely in the way of voluntary charity.

"Many other instances I could give of the unfavourable effect which the poor laws have had upon the characters, and consequently upon the happiness, of the poor^[o]. I do not blame the poor:—many, who would otherwise keep off the parish, are driven to it by the low rate of wages, which has been occasioned, I suppose, partly by an oversupply of hands, and partly by irregularities in our currency.

[o] See the eloquent and forcible Pamphlets of Townsend, Bicheno, and Jerram; and particularly the judicious and well-arranged Sermon on "the Immoral Effect of the Poor-Laws," by Dr Richards of Bampton.

"As I said before, I am glad that a legal provision is made for the poor, but I wish that more than half the money we now pay in rates was paid in wages, and that wages were such that a man in health, and with a good character, might always be pretty well able to provide for a moderate-sized family by his own exertions. The parish pay should be kept chiefly for unforeseen calamities, for the orphan and for the widow. We should then be able to give *them* a better allowance. Now there are so many claimants, that we cannot give *much* to any, and the able, bodied and strong are the means of lessening the pittance of the sick and the helpless."

Lady-day was now approaching, and with it the time when Barton was to go out of office. His *good-nature* had lavished so much of the public money upon clamorous applicants, that many parish bills were still unpaid. The fine too imposed upon the inhabitants of Inglewood upon the indictment of the road, and the legal costs attending it, were also now to be cleared off, so that altogether a very considerable sum was to be made up. It was well known, that many of the rates were much in arrears; and the farmers who had hitherto paid with some degree of punctuality, grumbled more and more at the neglect of the acting overseer in not levying them. Most of them expressed their determination to pay no more, till all arrears were cleared up. One large farm was about to change its occupier, and the in-coming tenant declared—as he had a good right to declare—that he would have nothing to do with the debts of the parish incurred before his coming into it. Strong hints also were thrown out, that Barton should take the consequences of his own neglect upon himself, and should make up all deficiencies out of his own pocket. These threats answered the purpose of alarming Barton, whose *good-nature*, great as it was, had never been able to stifle his regard for his own interest. He accordingly set actively to work to collect the arrears.

Those who had been unable to pay *one* rate, were not likely to pay *four*, which had now become due, together with the heavy addition occasioned by the indictment. Some of the defaulters blamed the overseer, for having let it run on so long; and all found fault with him for having brought so serious an expense upon the parish by his neglect about the roads.

All, I should not say;—for the poor widow Wildgoose uttered not a word of reproach or complaint against any one, but when asked for her arrears of

rates, passively replied that she had no money, and that the parish must take her goods.

She had never held up her head since the death of her eldest son. When she first set up her shop, she dealt a good deal for ready money, of course selling to ready-money customers at a much lower rate. From the time of her son's death, however, her activity and attention to business had deserted her. She suffered many of the poor to run deeply in her debt, and if she hinted any thing about payment, they pretended to be affronted, and took all their ready money to the other shops. Farmer Barton, too, thought that it would be *good-natured* to give the poor widow the *credit* of his custom and protection, and had almost all his shop-goods and grocery from her house. Unfortunately, however, neither his *good-nature*, of which he had so much—nor his sense of justice, of which he had but little—ever led him to recollect to pay her. She was too much depressed—too *meek-spirited*—to urge, or even to ask for, payment, and the consequence was, that she was just approaching to utter ruin, which was of course likely to be accelerated by her goods being distrained for poor rates. Her surviving children were in service in creditable places, and would have helped her in a moment; but she could not bear to tell them of her difficulties. Now, however, one of her neighbours contrived to let them know the situation, in which their mother was. Immediately they made up out of their wages a sum sufficient not only to pay off her arrears, but to give her a trifle for her present wants. And soon after she received by the post a blank cover addressed to her, inclosing a five pound note. She had no guess who could have sent it, but it was soon discovered that it came from Lucy Wilmot, a young woman to whom her eldest son had been attached. Her second son Sam lived with a kind-hearted lawyer in London, who, upon hearing of the distress of the poor widow and its cause, not only sent her some assistance in money, but promised to take an early opportunity of looking into her affairs, and of taking measures for compelling those of her debtors who were able, to pay what they owed her.

Of the other defaulters, some contrived to procure the necessary money; some were summoned before the magistrates, and then, finding that they had no remedy, found a friend to advance the money; against others warrants of distress were issued.

No case excited more commiseration than that of Michael Fielding. Michael had been a remarkably industrious and prudent labourer, and had managed to save a considerable sum of money. He married a young woman of similar character, and being naturally anxious to get forward in the world, they had ventured, seven or eight years before, to take a small farm. The rent was moderate when they took their lease, but they had felt the change of times severely. The property was in the hands of trustees, who did not feel justified in making a diminution of rent; and consequently poor Michael, every year, saw his means growing less, while his family grew larger. He was at work early and late, his wife gave all the help she could in the farm, and mended the children's clothes as long as they would hold together; and the hard-earned bread, upon which the family lived, was so coarse, that many of the labourers in the village would have turned from it in disdain. Michael was naturally of a cheerful disposition, and not apt to murmur or complain; sometimes, however, he could hardly suppress a sigh, when he thought of his own children, and of the hard fare to which they were accustomed, and saw in the parish-books the large sums that were given by the *good-nature* of Barton to idle and worthless characters^[p]. Now and then he had ventured gently to remonstrate upon the hardship of being obliged to contribute so large a portion of his limited means towards the maintenance of men, who had begun the world with the same advantages with himself, and who, but for their own improvidence, might have lived without being a burden to any one. The comparative smallness of his farm, however, and his former situation in life, prevented his remonstrance from being of much weight. He was now nearly insolvent. Several persons, to whom his character was known, would have been happy to have assisted him, but he was too high-minded to acquaint them with his difficulties. All the money, that by his utmost exertion he could scrape together, was just gone for rent, and he had nothing at all left to meet the demand for the arrears of rates, and for his portion of the expenses of the indictment. Barton, in spite of his *good-nature*, felt obliged to distrain. This brought other creditors upon poor Michael, and he was obliged to sell off every thing.

^[p] Townsend.

Barton, however, was enabled to make up his accounts, and had got them passed at the vestry, though there certainly was among his brother farmers a little grumbling. Barton defended himself as well as he could, and added,

that at all events he had got the *good-word* of the poor; that he always had borne, and always hoped to bear, the character of a *good-natured man*. Farmer Oldacre could not suffer this to pass without observation. He had been a little irritated by some things which he had witnessed at the vestry, and felt deeply for poor Michael, who had formerly worked upon his farm, and whom he had always loved and respected. "Come, come, neighbour Barton," said he, "let us hear no more of your *good-nature*, for which we all have to pay so dear. Your wish to obtain the *good-word* of the poor has not really benefitted them, and has done serious injury to the rest of your neighbours. Your *good-nature* about the licence has increased the immorality and the poverty of the parish;—and your *good-nature* to the road-workmen has given Fowler a broken leg;—your *good-nature* to farmer Dobson, in not making him cut his hedge, and do his statute-duty, has cost us ninety pounds;—and your *good-nature* as overseer has made the parish less able to pay that sum, and has helped to complete the ruin of two or three deserving families. And—if I may venture here to mention so serious a consideration—your *good-nature* would have allowed a sinner to go on towards eternal destruction without warning, and, for the sake of avoiding uneasiness of mind *here*, would have suffered him to incur everlasting punishment *hereafter*."

"Farmer Barton—I value brotherly-kindness most highly. I know that the love of our neighbour, and a readiness to do him good offices, is the second great commandment both of the Law and of the Gospel. But I hope that I shall ever be on my guard against that love of low popularity, that weak fear of giving offence, that sacrifice of *public* principle to *private* considerations, which, under the engaging name of *good-nature*, often lead to forgetfulness of duty both towards God and man, and do as much harm in the world as positive dishonesty."

NOTES.

Dr. Benjamin Franklin is well known as the friend of the poor and of liberty, and as one of the founders of American independence. The following observations will, with many persons, have additional weight, as coming from *his pen*.

Extract from Observations written in Pennsylvania in 1751.

2.—When families can be easily supported, more persons marry, and earlier in life.

3. In cities, where all trades, occupations, and offices are full, many delay marrying till they can see how to bear the charges of a family; which charges are greater in cities, as luxury is more common: many live single during life, and continue servants to families, journeymen to trades, &c. Hence cities do not, by natural generation, supply themselves with inhabitants; the deaths are more than the births.

4. In countries full settled, the case must be nearly the same, all lands being occupied and improved to the height; those who cannot get land, must labour for others that have it; when labourers are plenty, their wages will be low; by low wages a family is supported with difficulty; this difficulty deters many from marriage, who therefore long continue servants and single. Only, as the cities take supplies of people from the country, and thereby make a little more room in the country, marriage is a little more encouraged there, and the births exceed the deaths.

Dr. Franklin's Letter on the Labouring Poor. Dated April, 1768.

Sir,

I have met with much invective in the papers, for these two years past, against the hard-heartedness of the rich, and much complaint of the great oppressions suffered in this country by the labouring poor. Will you admit a word or two on the other side of the question? I do not propose to be an advocate for oppression or oppressors; but when I see that the poor are, by such writings, exasperated against the rich, and excited to insurrections, by which much mischief is done, and some lose their lives, I could wish the true state of things were better understood; the poor not made by these busy writers more uneasy and unhappy than their situation subjects them to be, and the nation not brought into disrepute among foreigners, by public groundless accusations of ourselves, as if the rich in England had no compassion for the poor, and Englishmen wanted common humanity.

In justice, then, to this country, give me leave to remark, that the condition of the poor here is by far the best in Europe; for that, except

in England and her American colonies, there is not in any country in the known world (not even in Scotland^[q] or Ireland) a provision by law to enforce a support of the poor. Every where else necessity reduces to beggary. This law was not made by the poor. The legislators were men of fortune. By that act they voluntarily subjected their own estates, and the estates of all others, to the payment of a tax for the support of the poor, encumbering those estates with a kind of rent charge for that purpose, whereby the poor are vested with an inheritance, as it were, in all the estates of the rich. I wish they were benefitted by this generous provision, in any degree equal to the good intention with which it was made, and is continued; but I fear the giving mankind a dependence on any thing for support, in age or sickness, besides industry and frugality during health, tends to flatter our natural indolence, to encourage idleness and prodigality, and thereby to promote and increase poverty, the very evil it was intended to cure; thus multiplying beggars, instead of diminishing them.

^[q] This, I believe, is inaccurate.

Besides this tax, which the rich in England have subjected themselves to in behalf of the poor, amounting in some places to five or six shillings in the pound of their annual income, they have, by donations and subscriptions, erected numerous schools in various parts of the kingdom, for educating, gratis, the children of the poor in reading and writing; and in many of these schools the children are also fed and clothed; they have erected hospitals at an immense expence, for the reception and cure of the sick, the lame, the wounded, and the insane poor, for lying-in women, and deserted children. They are also continually contributing towards making up losses occasioned by fire, by storms, or by floods; and to relieve the poor in severe seasons of frost, in time of scarcity, &c. in which benevolent and charitable contributions no nation exceeds us. Surely there is some gratitude due for so many instances of goodness.

Add to this all the laws made to discourage foreign manufactures, by laying heavy duties on them, or totally prohibiting them; whereby the rich are obliged to pay much higher prices for what they wear and consume than if the trade was open. There are so many laws for the

support of our labouring poor made by the rich, and continued at their expence: all the difference of price between our own and foreign commodities, being so much given by our rich to our poor; who would indeed be enabled by it to get by degrees above poverty, if they did not, as too generally they do, consider every increase of wages only as something that enables them to drink more and work less; so that their distress in sickness, age, or times of scarcity, continues to be the same as if such laws had never been made in their favour.

Much malignant censure have some writers bestowed upon the rich for their luxury and expensive living, while the poor are starving, not considering that what the rich expend, the labouring poor receive in payment for their labour. It may seem a paradox if I should assert, that our labouring poor do, in every year, receive the *whole revenue of the nation*; I mean not only the public revenue, but also the revenue or clear income of all private estates, or a sum equivalent to the whole. In support of this position, I reason thus: The rich do not work for one another; their habitations, furniture, clothing, carriages, food, ornaments, and every thing, in short, that they or their families use and consume, is the work or produce of the labouring poor, who are, and must be, continually paid for their labour in producing the same. In these payments the revenues of private estates are expended; for most people live up to their incomes. In clothing, or provision for troops, in arms, ammunition, ships, tents, carriages, &c. &c. (every particular the produce of labour,) much of the public revenue is expended. The pay of officers, civil and military, and of the private soldiers and sailors, requires the rest; and they spend that also in paying for what is produced by the labouring poor. I allow that some estates may increase by the owners spending less than their income; but then I conceive, that other estates do at the same time diminish, by the owners spending more than their incomes; so that when the enriched want to buy more land, they easily find lands in the hands of the impoverished, whose necessities oblige them to sell; and thus this difference is equalled. I allow also, that part of the expense of the rich is in foreign produce, or manufactures, for producing which the labouring poor of other nations must be paid: but then, I say, we must first pay our own labouring poor for an equal quantity of our manufactures or produce, to exchange for

those foreign productions, or we must pay for them in money, which money not being a natural produce to our country, must first be purchased from abroad, by sending out its value in the produce or manufactures of this country, for which manufactures our labouring poor are to be paid. And, indeed, if we did not export more than we import, we could have no money at all. I allow farther, that there are middle men, who make a profit, and even get estates, by purchasing the labour of the poor, and selling it at advanced prices to the rich; but then they cannot enjoy that profit, or the increase of estates, but by spending them in employing and paying our labouring poor, in some shape or other, for the products of industry. Even beggars, pensioners, hospitals, &c. all that are supported by charity, spend their incomes in the same manner. So that finally, as I said at first, our labouring poor receive annually the whole of the clear revenues of the nation, and from us they can have no more.

If it be said that their wages are too low, and that they ought to be better paid for their labour, I heartily wish that any means could be fallen upon to do it consistent with their interest and happiness; but as the cheapness of other things is owing to the plenty of those things, so the cheapness of labour is in most cases owing to the multitude of labourers, and to their underworking one another in order to obtain employment. How is this to be remedied? A law might be made to raise their wages; but if our manufactures are too dear, they will not vend abroad, and all that part of employment will fail, unless, by fighting and conquering, we compel other nations to buy our goods, whether they will or no, which some have been mad enough at times to propose. Among ourselves, unless we give our working people less employment, how can we, for what they do, pay them higher than we do? Out of what fund is the additional price of labour to be paid, when all our present incomes are, as it were, mortgaged to them? Should they get higher wages, would that make them less poor, if in consequence they worked fewer days of the week proportionably? I have said, a law might be made to raise their wages; but I doubt much, whether it could be executed to any purpose, unless another law, now indeed almost obsolete, could at the same time be revived and enforced; a law, I mean, that I have often heard and repeated, but few

have ever duly considered, *Six days shalt thou labour*. This is as positive a part of the Commandment, as that which says, *The seventh day thou shalt rest*: but we remember well to observe the indulgent part, and never think of the other. *Saint Monday*^[r] is generally as duly kept by our working people as Sunday: the only difference is, that instead of employing it cheaply at church, they are wasting it expensively at the alehouse.

I am, Sir, your's, &c.

[r] This applies not so much to farmers' workmen as to *manufacturers'* labourers.

Extract from Dr. Franklin's remarks on Luxury, Idleness, and Industry.

Some of those who grow rich will be prudent, live within bounds, and preserve what they have gained for their posterity: others, fond of shewing their wealth, will be extravagant, and ruin themselves. Laws cannot prevent this; and perhaps it is not always an evil to the public. A shilling spent idly by a fool, may be picked up by a wiser person, who knows better what to do with it. It is therefore not lost. A vain silly fellow builds a fine house, furnishes it richly, lives in it expensively, and in a few years ruins himself: but the masons, carpenters, smiths, and other honest tradesmen, have been by his employ assisted in maintaining and raising their families: the farmer has been paid for his labour, and encouraged, and the estate is now in better hands. In some cases, indeed, certain modes of luxury may be a public evil, in the same manner as it is a private one.

THE END.

[Transcriber's Note:

Older form of contractions retained.

Spelling "aground" and "a-ground" used in the text.

Spelling "ale-house" and "alehouse" used in the text.

Spelling "bed-side" and "bedside" used in the text.

Spelling "gate-way" and "gateway" used in the text.

Spelling "benefited" and "benefitted" used in the text.

Spelling "licence" and "license" used in the text.

Spelling "parish officer" and "parish-officer" used in text.

Page 31. Letter 'f' added to text (as a matter of).

Page 47. Comma, blank space and double quote removed after 'answered'.
(Wildgoose answered that as for the penalty,)

Page 89. Quotation marks around 'Mrs. Hawker' removed. (No, indeed now,
Mrs. Hawker, you must)

Page 109. The notation '[oe]' is used for the oe-ligature.

Page 118. Word 'carrried' changed to 'carried' (accordingly carried him).

Page 120. Word 'matress' spelling retained. May be period correct.

Page 137. Word 'unfrequently' spelling retained. May be period correct.

Page 138. Closing double-quote added. (as a fit man to keep it.)

Page 145. Word 'intrusted' spelling retained. May be period correct.]

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